

AOA language ☒ English ☐ Hindi

SRN of RUN

H26654400

Prefill

*Table as notified under schedule I of the companies Act, 2013 is applicable to the company

WEVOIS LABS PRIVATE LIMITED

A COMPANY LIMITED BY SHARES

		Article No	Description
			<i>Interpretation</i>
☐	☒	I	(1) In these regulations -- (a) "the Act" means the Companies Act, 2013, (b) "the seal" means the common seal of the company. (2) Unless the context otherwise requires, words or expressions contained in these regulations shall bear the same meaning as in the Act or any statutory modification thereof in force at the date at which these regulations become binding on the company. PRIVATE COMPANY (3) The Company is a Private Company within the meaning of Section 2(68) of the Companies Act, 2013 "private company" means a company having a minimum paid-up share capital of one lakh rupees or such higher paid-up share capital as may be prescribed, and which by its articles,— (i) restricts the right to transfer its shares; (ii) except in case of One Person Company, limits the number of its members to two hundred: Provided that where two or more persons hold one or more shares in a company jointly, they shall, for the purposes of this clause, be treated as a single member: Provided further that— (A) persons who are in the employment of the company; and (B) persons who, having been formerly in the employment of the company, were members of the company while in that employment and have continued to be members after the employment ceased, shall not be included in the number of members; and (iii) prohibits any invitation to the public to subscribe for any securities of the company;
			<i>Share capital and variation of rights</i>
☐	☐	II 1	Subject to the provisions of the Act and these Articles, the shares in the capital of the company shall be under the control of the Directors who may issue, allot or otherwise dispose of the same or any of them to such persons, in such proportion and on such terms and conditions and either at a premium or at par and at such time as they may from time to time think fit.
☐	☐	2	(i) Every person whose name is entered as a member in the register of members shall be entitled to receive within two months after incorporation, in case of subscribers to the memorandum or after allotment or within one month after the application for the registration of transfer or transmission or within such other period as the conditions of issue shall be provided, -- (a) one certificate for all his shares without payment of any charges; or (b) several certificates, each for one or more of his shares, upon payment of twenty rupees for each certificate after the first. (ii) Every certificate shall be under the seal and shall specify the shares to which it relates and the amount paid-up thereon. (iii) In respect of any share or shares held jointly by several persons, the company shall not be bound to issue

			more than one certificate, and delivery of a certificate for a share to one of several joint holders shall be sufficient delivery to all such holders
☐	☐	3	(i) If any share certificate be worn out, defaced, mutilated or torn or if there be no further space on the back for endorsement of transfer, then upon production and surrender thereof to the company, a new certificate may be issued in lieu thereof, and if any certificate is lost or destroyed then upon proof thereof to the satisfaction of the company and on execution of such indemnity as the company deem adequate, a new certificate in lieu thereof shall be given. Every certificate under this Article shall be issued on payment of twenty rupees for each certificate. (ii) The provisions of Articles (2) and (3) shall mutatis mutandis apply to debentures of the company.
☐	☐	4	Except as required by law, no person shall be recognised by the company as holding any share upon any trust, and the company shall not be bound by, or be compelled in any way to recognise (even when having notice thereof) any equitable, contingent, future or partial interest in any share, or any interest in any fractional part of a share, or (except only as by these regulations or by law otherwise provided) any other rights in respect of any share except an absolute right to the entirety thereof in the registered holder.
☐	☐	5	(i) The company may exercise the powers of paying commissions conferred by sub-section (6) of section 40, provided that the rate per cent or the amount of the commission paid or agreed to be paid shall be disclosed in the manner required by that section and rules made thereunder. (ii) The rate or amount of the commission shall not exceed the rate or amount prescribed in rules made under sub-section (6) of section 40. (iii) The commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or partly in the one way and partly in the other.
☐	☐	6	(i) If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may, subject to the provisions of section 48, and whether or not the company is being wound up, be varied with the consent in writing of the holders of three-fourths of the issued shares of that class, or with the sanction of a special resolution passed at a separate meeting of the holders of the shares of that class. (ii) To every such separate meeting, the provisions of these regulations relating to general meetings shall mutatis mutandis apply, but so that the necessary quorum shall be at least two persons holding at least one-third of the issued shares of the class in question.
☐	☐	7	The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking pari passu therewith.
☐	☐	8	Subject to the provisions of section 55, any preference shares may, with the sanction of an ordinary resolution, be issued on the terms that they are to be redeemed on such terms and in such manner as the company before the issue of the shares may, by special resolution, determine.
			Lien
☐	☐	9	(i) The company shall have a first and paramount lien -- (a) on every share (not being a fully paid share), for all monies (whether presently payable or not) called, or payable at a fixed time, in respect of that share; and (b) on all shares (not being fully paid shares) standing registered in the name of a single person, for all monies presently payable by him or his estate to the company: Provided that the Board of directors may at any time declare any share to be wholly or in part exempt from the provisions of this clause. (ii) The company's lien, if any, on a share shall extend to all dividends payable and bonuses declared from time to time in respect of such shares.
☐	☐	10	The company may sell, in such manner as the Board thinks fit, any shares on which the company has a lien: Provided that no sale shall be made -- (a) unless a sum in respect of which the lien exists is presently payable; or (b) until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share or the person entitled thereto by reason of his death or insolvency.
☐	☐	11	(i) To give effect to any such sale, the Board may authorise some person to transfer the shares sold to the purchaser thereof (ii) The purchaser shall be registered as the holder of the shares comprised in any such transfer. (iii) The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.

☐	☐	12	(i) The proceeds of the sale shall be received by the company and applied in payment of such part of the amount in respect of which the lien exists as is presently payable. ii) The residue, if any, shall, subject to a like lien for sums not presently payable as existed upon the shares before the sale, be paid to the person entitled to the shares at the date of the sale.
			<i>Calls on shares</i>
☐	☐	13	(i) The Board may, from time to time, make calls upon the members in respect of any monies unpaid on their shares (whether on account of the nominal value of the shares or by way of premium) and not by the conditions of allotment thereof made payable at fixed times: Provided that no call shall exceed one-fourth of the nominal value of the share or be payable at less than one month from the date fixed for the payment of the last preceding call. (ii) Each member shall, subject to receiving at least fourteen days' notice specifying the time or times and place of payment, pay to the company, at the time or times and place so specified, the amount called on his shares. (iii) A call may be revoked or postponed at the discretion of the Board.
☐	☐	14	A call shall be deemed to have been made at the time when the resolution of the Board authorizing the call was passed and may be required to be paid by instalments.
☐	☐	15	The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.
☐	☐	16	(i) If a sum called in respect of a share is not paid before or on the day appointed for payment thereof, the person from whom the sum is due shall pay interest thereon from the day appointed for payment thereof to the time of actual payment at ten per cent per annum or at such lower rate, if any, as the Board may determine. (ii) The Board shall be at liberty to waive payment of any such interest wholly or in part.
☐	☐	17	(i) Any sum which by the terms of issue of a share becomes payable on allotment or at any fixed date, whether on account of the nominal value of the share or by way of premium, shall, for the purposes of these regulations, be deemed to be a call duly made and payable on the date on which by the terms of issue such sum becomes payable. (ii) In case of non-payment of such sum, all the relevant provisions of these regulations as to payment of interest and expenses, forfeiture or otherwise shall apply as if such sum had become payable by virtue of a call duly made and notified.
☐	☐	18	The Board -- (a) may, if it thinks fit, receive from any member willing to advance the same, all or any part of the monies uncalled and unpaid upon any shares held by him; and (b) upon all or any of the monies so advanced, may (until the same would, but for such advance, become presently payable) pay interest at such rate not exceeding, unless the company in general meeting shall otherwise direct, twelve per cent per annum, as may be agreed upon between the Board and the member paying the sum in advance.
			<i>Transfer of shares</i>
☐	☐	19	(i) The instrument of transfer of any share in the company shall be executed by or on behalf of both the transferor and transferee. (ii) The transferor shall be deemed to remain a holder of the share until the name of the transferee is entered in the register of members in respect thereof.
☐	☐	20	The Board may, subject to the right of appeal conferred by section 58 decline to register -- (a) the transfer of a share, not being a fully paid share, to a person of whom they do not approve; or (b) any transfer of shares on which the company has a lien.
☐	☐	21	The Board may decline to recognise any instrument of transfer unless -- (a) the instrument of transfer is in the form as prescribed in rules made under sub-section (1) of section 56; (b) the instrument of transfer is accompanied by the certificate of the shares to which it relates, and such other evidence as the Board may reasonably require to show the right of the transferor to make the transfer; and (c) the instrument of transfer is in respect of only one class of shares.
☐	☐	22	On giving not less than seven days' previous notice in accordance with section 91 and rules made thereunder, the registration of transfers may be suspended at such times and for such periods as the Board may from time to time determine: Provided that such registration shall not be suspended for more than thirty days at any one time or for more than forty-five days in the aggregate in any year.

			<i>Transmission of shares</i>
☐	☐	23	(i) On the death of a member, the survivor or survivors where the member was a joint holder, and his nominee or nominees or legal representatives where he was a sole holder, shall be the only persons recognised by the company as having any title to his interest in the shares (ii) Nothing in clause (i) shall release the estate of a deceased joint holder from any liability in respect of any share which had been jointly held by him with other persons.
☐	☐	24	(i) Any person becoming entitled to a share in consequence of the death or insolvency of a member may, upon such evidence being produced as may from time to time properly be required by the Board and subject as hereinafter provided, elect, either -- (a) to be registered himself as holder of the share; or (b) to make such transfer of the share as the deceased or insolvent member could have made. (ii) The Board shall, in either case, have the same right to decline or suspend registration as it would have had, if the deceased or insolvent member had transferred the share before his death or insolvency.
☐	☐	25	(i) If the person so becoming entitled shall elect to be registered as holder of the share himself, he shall deliver or send to the company a notice in writing signed by him stating that he so elects. (ii) If the person aforesaid shall elect to transfer the share, he shall testify his election by executing a transfer of the share. (iii) All the limitations, restrictions and provisions of these regulations relating to the right to transfer and the registration of transfers of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice or transfer were a transfer signed by that member.
☐	☐	26	A person becoming entitled to a share by reason of the death or insolvency of the holder shall be entitled to the same dividends and other advantages to which he would be entitled if he were the registered holder of the share, except that he shall not, before being registered as a member in respect of the share, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the company: Provided that the Board may, at any time, give notice requiring any such person to elect either to be registered himself or to transfer the share, and if the notice is not complied with within ninety days, the Board may thereafter withhold payment of all dividends, bonuses or other monies payable in respect of the share, until the requirements of the notice have been complied with.
			<i>Forfeiture of shares</i>
☐	☐	27	If a member fails to pay any call, or instalment of a call, on the day appointed for payment thereof, the Board may, at any time thereafter during such time as any part of the call or instalment remains unpaid, serve a notice on him requiring payment of so much of the call or instalment as is unpaid, together with any interest which may have accrued.
☐	☐	28	The notice aforesaid shall -- (a) name a further day (not being earlier than the expiry of fourteen days from the date of service of the notice) on or before which the payment required by the notice is to be made; and (b) state that, in the event of non-payment on or before the day so named, the shares in respect of which the call was made shall be liable to be forfeited.
☐	☐	29	If the requirements of any such notice as aforesaid are not complied with, any share in respect of which the notice has been given may, at any time thereafter, before the payment required by the notice has been made, be forfeited by a resolution of the Board to that effect.
☐	☐	30	(i) A forfeited share may be sold or otherwise disposed of on such terms and in such manner as the Board thinks fit. (ii) At any time before a sale or disposal as aforesaid, the Board may cancel the forfeiture on such terms as it thinks fit.
☐	☐	31	(i) A person whose shares have been forfeited shall cease to be a member in respect of the forfeited shares, but shall, notwithstanding the forfeiture, remain liable to pay to the company all monies which, at the date of forfeiture, were presently payable by him to the company in respect of the shares. (ii) The liability of such person shall cease if and when the company shall have received payment in full of all such monies in respect of the shares.

☐	☐	32	(i) A duly verified declaration in writing that the declarant is a director, the manager or the secretary, of the company, and that a share in the company has been duly forfeited on a date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the share; (ii) The company may receive the consideration, if any, given for the share on any sale or disposal thereof and may execute a transfer of the share in favour of the person to whom the share is sold or disposed of; (iii) The transferee shall thereupon be registered as the holder of the share; and (iv) The transferee shall not be bound to see to the application of the purchase money, if any, nor shall his title to the share be affected by any irregularity or invalidity in the proceedings in reference to the forfeiture, sale or disposal of the share.
☐	☐	33	The provisions of these regulations as to forfeiture shall apply in the case of nonpayment of any sum which, by the terms of issue of a share, becomes payable at a fixed time, whether on account of the nominal value of the share or by way of premium, as if the same had been payable by virtue of a call duly made and notified.
			<i>Alteration of capital</i>
☐	☐	34	The company may, from time to time, by ordinary resolution increase the share capital by such sum, to be divided into shares of such amount, as may be specified in the resolution.
☐	☐	35	Subject to the provisions of section 61, the company may, by ordinary resolution, -- (a) consolidate and divide all or any of its share capital into shares of larger amount than its existing shares; (b) convert all or any of its fully paid-up shares into stock, and reconvert that stock into fully paid-up shares of any denomination; (c) sub-divide its existing shares or any of them into shares of smaller amount than is fixed by the memorandum; (d) cancel any shares which, at the date of the passing of the resolution, have not been taken or agreed to be taken by any person.
☐	☐	36	Where shares are converted into stock, -- (a) the holders of stock may transfer the same or any part thereof in the same manner as, and subject to the same regulations under which, the shares from which the stock arose might before the conversion have been transferred, or as near thereto as circumstances admit: Provided that the Board may, from time to time, fix the minimum amount of stock transferable, so, however, that such minimum shall not exceed the nominal amount of the shares from which the stock arose. (b) the holders of stock shall, according to the amount of stock held by them, have the same rights, privileges and advantages as regards dividends, voting at meetings of the company, and other matters, as if they held the shares from which the stock arose; but no such privilege or advantage (except participation in the dividends and profits of the company and in the assets on winding up) shall be conferred by an amount of stock which would not, if existing in shares, have conferred that privilege or advantage. (c) such of the regulations of the company as are applicable to paid-up shares shall apply to stock and the words "share" and "shareholder" in those regulations shall include "stock" and "stock-holder" respectively.
☐	☐	37	The company may, by special resolution, reduce in any manner and with, and subject to, any incident authorised and consent required by law, -- (a) its share capital; (b) any capital redemption reserve account; or (c) any share premium account.
			<i>Capitalisation of profits</i>
☐	☐	38	(i) The company in general meeting may, upon the recommendation of the Board, resolve -- (a) that it is desirable to capitalise any part of the amount for the time being standing to the credit of any of the company's reserve accounts, or to the credit of the, profit and loss account, or otherwise available for distribution; and (b) that such sum be accordingly set free for distribution in the manner specified in clause (ii) amongst the members who would have been entitled thereto, if distributed by way of dividend and in the same proportions. (ii) The sum aforesaid shall not be paid in cash but shall be applied, subject to the provision contained in

			clause (iii), either in or towards -- (A) paying up any amounts for the time being unpaid on any shares held by such members respectively; (B) paying up in full, unissued shares of the company to be allotted and distributed, credited as fully paid-up, to and amongst such members in the proportions aforesaid; (C) partly in the way specified in sub-clause (A) and partly in that specified in sub-clause (B); (D) A securities premium account and a capital redemption reserve account may, for the purposes of this regulation, be applied in the paying up of unissued shares to be issued to members of the company as fully paid bonus shares; (E) The Board shall give effect to the resolution passed by the company in pursuance of this regulation.
☐	☐	39	(i) Whenever such a resolution as aforesaid shall have been passed, the Board shall -- (a) make all appropriations and applications of the undivided profits resolved to be capitalised thereby, and all allotments and issues of fully paid shares if any; and (b) generally do all acts and things required to give effect thereto. (ii) The Board shall have power -- (a) to make such provisions, by the issue of fractional certificates or by payment in cash or otherwise as it thinks fit, for the case of shares becoming distributable in fractions; and (b) to authorise any person to enter, on behalf of all the members entitled thereto, into an agreement with the company providing for the allotment to them respectively, credited as fully paid-up, of any further shares to which they may be entitled upon such capitalisation, or as the case may require, for the payment by the company on their behalf, by the application thereto of their respective proportions of profits resolved to be capitalised, of the amount or any part of the amounts remaining unpaid on their existing shares; (iii) Any agreement made under such authority shall be effective and binding on such members.
			Buy-back of shares
☐	☐	40	Notwithstanding anything contained in these articles but subject to the provisions of sections 68 to 70 and any other applicable provision of the Act or any other law for the time being in force, the company may purchase its own shares or other specified securities.
			General meetings
☐	☐	41	All general meetings other than annual general meeting shall be called extraordinary general meeting.
☐	☐	42	(i) The Board may, whenever it thinks fit, call an extraordinary general meeting. (ii) If at any time directors capable of acting who are sufficient in number to form a quorum are not within India, any director or any two members of the company may call an extraordinary general meeting in the same manner, as nearly as possible, as that in which such a meeting may be called by the Board.
			Proceedings at general meetings
☐	☐	43	(i) No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business. (ii) Save as otherwise provided herein, the quorum for the general meetings shall be as provided in section 103.
☐	☐	44	The chairperson, if any, of the Board shall preside as Chairperson at every general meeting of the company.
☐	☐	45	If there is no such Chairperson, or if he is not present within fifteen minutes after the time appointed for holding the meeting, or is unwilling to act as chairperson of the meeting, the directors present shall elect one of their members to be Chairperson of the meeting.
☐	☐	46	If at any meeting no director is willing to act as Chairperson or if no director is present within fifteen minutes after the time appointed for holding the meeting, the members present shall choose one of their members to be Chairperson of the meeting.
			Adjournment of meeting
☐	☐	47	(i) The Chairperson may, with the consent of any meeting at which a quorum is present, and shall, if so directed by the meeting, adjourn the meeting from time to time and from place to place. (ii) No business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

			(iii) When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting. (iv) Save as aforesaid, and as provided in section 103 of the Act, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.
			<i>Voting rights</i>
☐	☐	48	Subject to any rights or restrictions for the time being attached to any class or classes of shares, -- (a) on a show of hands, every member present in person shall have one vote; and (b) on a poll, the voting rights of members shall be in proportion to his share in the paid-up equity share capital of the company.
☐	☐	49	A member may exercise his vote at a meeting by electronic means in accordance with section 108 and shall vote only once.
☐	☐	50	(i) In the case of joint holders, the vote of the senior who tenders a vote, whether in person or by proxy, shall be accepted to the exclusion of the votes of the other joint holders. (ii) For this purpose, seniority shall be determined by the order in which the names stand in the register of members.
☐	☐	51	A member of unsound mind, or in respect of whom an order has been made by any court having jurisdiction in lunacy, may vote, whether on a show of hands or on a poll, by his committee or other legal guardian, and any such committee or guardian may, on a poll, vote by proxy.
☐	☐	52	Any business other than that upon which a poll has been demanded may be proceeded with, pending the taking of the poll.
☐	☐	53	No member shall be entitled to vote at any general meeting unless all calls or other sums presently payable by him in respect of shares in the company have been paid
☐	☐	54	(i) No objection shall be raised to the qualification of any voter except at the meeting or adjourned meeting at which the vote objected to is given or tendered, and every vote not disallowed at such meeting shall be valid for all purposes. (ii) Any such objection made in due time shall be referred to the Chairperson of the meeting, whose decision shall be final and conclusive.
			<i>Proxy</i>
☐	☐	55	The instrument appointing a proxy and the power-of-attorney or other authority, if any, under which it is signed or a notarised copy of that power or authority, shall be deposited at the registered office of the company not less than 48 hours before the time for holding the meeting or adjourned meeting at which the person named in the instrument proposes to vote, or, in the case of a poll, not less than 24 hours before the time appointed for the taking of the poll; and in default the instrument of proxy shall not be treated as valid.
☐	☐	56	An instrument appointing a proxy shall be in the form as prescribed in the rules made under section 105
☐	☐	57	A vote given in accordance with the terms of an instrument of proxy shall be valid, notwithstanding the previous death or insanity of the principal or the revocation of the proxy or of the authority under which the proxy was executed, or the transfer of the shares in respect of which the proxy is given: Provided that no intimation in writing of such death, insanity, revocation or transfer shall have been received by the company at its office before the commencement of the meeting or adjourned meeting at which the proxy is used.
			<i>Board of Directors</i>
☐	☒	58	The number of the directors and the names of the first directors shall be determined in writing by the subscribers of the memorandum or a majority of them. Following will be the first directors:- 1. Mr. Abhinav shekhar vashistha 2. Mr. Abhishek Gupta
☐	☐	59	(i) The remuneration of the directors shall, in so far as it consists of a monthly payment, be deemed to accrue from day-to-day. (ii) In addition to the remuneration payable to them in pursuance of the Act, the directors may be paid all travelling, hotel and other expenses properly incurred by them -- (a) in attending and returning from meetings of the Board of Directors or any committee thereof or general meetings of the company; or (b) in connection with the business of the company.

☐	☐	60	The Board may pay all expenses incurred in getting up and registering the company.
☐	☐	61	The company may exercise the powers conferred on it by section 88 with regard to the keeping of a foreign register; and the Board may (subject to the provisions of that section) make and vary such regulations as it may think fit respecting the keeping of any such register.
☐	☐	62	All cheques, promissory notes, drafts, hundis, bills of exchange and other negotiable instruments, and all receipts for monies paid to the company, shall be signed, drawn, accepted, endorsed, or otherwise executed, as the case may be, by such person and in such manner as the Board shall from time to time by resolution determine
☐	☐	63	Every director present at any meeting of the Board or of a committee thereof shall sign his name in a book to be kept for that purpose.
☐	☐	64	(i) Subject to the provisions of section 149, the Board shall have power at any time, and from time to time, to appoint a person as an additional director, provided the number of the directors and additional directors together shall not at any time exceed the maximum strength fixed for the Board by the articles. (ii) Such person shall hold office only up to the date of the next annual general meeting of the company but shall be eligible for appointment by the company as a director at that meeting subject to the provisions of the Act.
			<i>Proceedings of the Board</i>
☐	☐	65	(i) The Board of Directors may meet for the conduct of business, adjourn and otherwise regulate its meetings, as it thinks fit. (ii) A director may, and the manager or secretary on the requisition of a director shall, at any time, summon a meeting of the Board.
☐	☐	66	(i) Save as otherwise expressly provided in the Act, questions arising at any meeting of the Board shall be decided by a majority of votes. (ii) In case of an equality of votes, the Chairperson of the Board, if any, shall have a second or casting vote.
☐	☐	67	The continuing directors may act notwithstanding any vacancy in the Board; but, if and so long as their number is reduced below the quorum fixed by the Act for a meeting of the Board, the continuing directors or director may act for the purpose of increasing the number of directors to that fixed for the quorum, or of summoning a general meeting of the company, but for no other purpose.
☐	☐	68	(i) The Board may elect a Chairperson of its meetings and determine the period for which he is to hold office. (ii) If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the directors present may choose one of their number to be Chairperson of the meeting.
☐	☐	69	(i) The Board may, subject to the provisions of the Act, delegate any of its powers to committees consisting of such member or members of its body as it thinks fit. (ii) Any committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may be imposed on it by the Board.
☐	☐	70	(i) A committee may elect a Chairperson of its meetings. (ii) If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the members present may choose one of their members to be Chairperson of the meeting.
☐	☐	71	(i) A committee may meet and adjourn as it thinks fit. (ii) Questions arising at any meeting of a committee shall be determined by a majority of votes of the members present, and in case of an equality of votes, the Chairperson shall have a second or casting vote.
☐	☐	72	All acts done in any meeting of the Board or of a committee thereof or by any person acting as a director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such directors or of any person acting as aforesaid, or that they or any of them were disqualified, be as valid as if every such director or such person had been duly appointed and was qualified to be a director.
☐	☐	73	Save as otherwise expressly provided in the Act, a resolution in writing, signed by all the members of the Board or of a committee thereof, for the time being entitled to receive notice of a meeting of the Board or committee, shall be valid and effective as if it had been passed at a meeting of the Board or committee, duly convened and held.
			<i>Chief Executive Officer, Manager, Company Secretary or Chief Financial Officer</i>

☐	☐		Subject to the provisions of the Act, --
		74	(i) A chief executive officer, manager, company secretary or chief financial officer may be appointed by the Board for such term, at such remuneration and upon such conditions as it may think fit; and any chief executive officer, manager, company secretary or chief financial officer so appointed may be removed by means of a resolution of the Board; (ii) A director may be appointed as chief executive officer, manager, company secretary or chief financial officer
☐	☐	75	A provision of the Act or these regulations requiring or authorising a thing to be done by or to a director and chief executive officer, manager, company secretary or chief financial officer shall not be satisfied by its being done by or to the same person acting both as director and as, or in place of, chief executive officer, manager, company secretary or chief financial officer.
			<i>The Seal</i>
☐	☐	76	(i) The Board shall provide for the safe custody of the seal. (ii) The seal of the company shall not be affixed to any instrument except by the authority of a resolution of the Board or of a committee of the Board authorised by it in that behalf, and except in the presence of at least two directors and of the secretary or such other person as the Board may appoint for the purpose; and those two directors and the secretary or other person aforesaid shall sign every instrument to which the seal of the company is so affixed in their presence.
			<i>Dividends and Reserve</i>
☐	☐	77	The company in general meeting may declare dividends, but no dividend shall exceed the amount recommended by the Board.
☐	☐	78	Subject to the provisions of section 123, the Board may from time to time pay to the members such interim dividends as appear to it to be justified by the profits of the company.
☐	☐	79	(i) The Board may, before recommending any dividend, set aside out of the profits of the company such sums as it thinks fit as a reserve or reserves which shall, at the discretion of the Board, be applicable for any purpose to which the profits of the company may be properly applied, including provision for meeting contingencies or for equalizing dividends; and pending such application, may, at the like discretion, either be employed in the business of the company or be invested in such investments (other than shares of the company) as the Board may, from time to time, think fit. (ii) The Board may also carry forward any profits which it may consider necessary not to divide, without setting them aside as a reserve
☐	☐	80	(i) Subject to the rights of persons, if any, entitled to shares with special rights as to dividends, all dividends shall be declared and paid according to the amounts paid or credited as paid on the shares in respect whereof the dividend is paid, but if and so long as nothing is paid upon any of the shares in the company, dividends may be declared and paid according to the amounts of the shares. (ii) No amount paid or credited as paid on a share in advance of calls shall be treated for the purposes of this regulation as paid on the share. (iii) All dividends shall be apportioned and paid proportionately to the amounts paid or credited as paid on the shares during any portion or portions of the period in respect of which the dividend is paid; but if any share is issued on terms providing that it shall rank for dividend as from a particular date such share shall rank for dividend accordingly.
☐	☐	81	The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the company on account of calls or otherwise in relation to the shares of the company.
☐	☐	82	(i) Any dividend, interest or other monies payable in cash in respect of shares may be paid by cheque or warrant sent through the post directed to the registered address of the holder or, in the case of joint holders, to the registered address of that one of the joint holders who is first named on the register of members, or to such person and to such address as the holder or joint holders may in writing direct. (ii) Every such cheque or warrant shall be made payable to the order of the person to whom it is sent.
☐	☐	83	Any one of two or more joint holders of a share may give effective receipts for any dividends, bonuses or other monies payable in respect of such share.
☐	☐	84	Notice of any dividend that may have been declared shall be given to the persons entitled to share therein in the manner mentioned in the Act.

☐	☐	85	No dividend shall bear interest against the company.
			Accounts
☐	☐	86	(i) The Board shall from time to time determine whether and to what extent and at what times and places and under what conditions or regulations, the accounts and books of the company, or any of them, shall be open to the inspection of members not being directors. (ii) No member (not being a director) shall have any right of inspecting any account or book or document of the company except as conferred by law or authorised by the Board or by the company in general meeting.
			Winding up
☐	☐	87	Subject to the provisions of Chapter XX of the Act and rules made thereunder -- (i) If the company shall be wound up, the liquidator may, with the sanction of a special resolution of the company and any other sanction required by the Act, divide amongst the members, in specie or kind, the whole or any part of the assets of the company, whether they shall consist of property of the same kind or not. (ii) For the purpose aforesaid, the liquidator may set such value as he deems fair upon any property to be divided as aforesaid and may determine how such division shall be carried out as between the members or different classes of members. (iii) The liquidator may, with the like sanction, vest the whole or any part of such assets in trustees upon such trusts for the benefit of the contributories if he considers necessary, but so that no member shall be compelled to accept any shares or other securities whereon there is any liability.
			Indemnity
☐	☐	88	Every officer of the company shall be indemnified out of the assets of the company against any liability incurred by him in defending any proceedings, whether civil or criminal, in which judgment is given in his favour or in which he is acquitted or in which relief is granted to him by the court or the Tribunal.
☐		89	DEMATERIALISATION OF SECURITIES Notwithstanding anything contained in these articles, the company shall be entitled to dematerialise, rematerialize its securities and to offer securities in a dematerialised form pursuant to the Depositories Act, 1996 and the regulations and rules made thereunder from time to time. (i) Options for Securities Holder Every person subscribing to securities offered by the company shall have the option to receive security certificates or to hold the securities with a depository. Such a person who is the beneficial owner of the securities can at any time opt out of a depository, if permitted by the applicable law in respect of any security in the manner provided by the Depositories Act, 1996 and the company shall, in the manner and within the time prescribed, issue to the beneficial owner the required certificates of securities. If a person opts to hold its Security with a Depository, the Company shall intimate such Depository the details of allotment of the Security If a person opts to hold his security with a depository, the company shall intimate such depository the details of allotment of the security and/or transfer of securities in his name and on receipt of the information, the depository shall enter in its record the name of the allottee and/or transferee as the beneficial owner of the security. (ii) Securities in Depositories to be in Fungible Form

All securities held by a depository shall be dematerialised and be in fungible form. Nothing contained in Sections 89 and 186 of the Act shall apply to a depository in respect of the securities held by it on behalf of the beneficial owners.

(iii) Distinctive Numbers of Securities held in a Depository

Nothing contained in the Act or these articles regarding the necessity of having distinctive Numbers for securities issued by the company shall apply to securities held with a depository.

(iv) Rights of Depositories and Beneficial Owners

(a) Notwithstanding anything to the contrary contained in the Act or these articles, a depository shall be deemed to be the registered owner for the purposes of effecting transfer of ownership of security on behalf of the beneficial owner.

(b) Save as otherwise provided in (a) above, the depository as the registered owner of the securities shall not have any voting rights or any other rights in respect of the securities held by it.

(c) Every person holding securities of the company and whose name is entered as the beneficial owner in the records of the depository shall be deemed to be a member of the company. The beneficial owner of securities shall be entitled to all the rights and benefits and be subject to all the liabilities in respect of his securities which are held by a depository.

(v) Service of Documents

Notwithstanding anything to the contrary contained in the Act or these articles, where securities are held in a depository, the records of the beneficial ownership may be served by such depository on the company by means of electronic mode or by delivery of floppies or discs.

(vi) Transfer of Securities

Nothing contained in Section 108 of the Act or these articles shall apply to a transfer of securities effected by a transferor and transferee both of whom are entered as beneficial owners in the records of a depository.

(vii) Allotment of Securities Dealt in a Depository

Notwithstanding anything contrary in the Act or these articles, where securities are dealt in a depository, the company shall intimate the details thereof to the depository immediately on allotment and/or registration of transfer of such securities.

(viii) Register and Index of Beneficial Owners

The register and index of beneficial owners maintained by a depository under the Depositories Act, 1996, shall be deemed to be the register and index of members and security holders for the purposes of these articles.

Part B

1. Without the prior written consent of the Upya, the Company shall not pass any resolution or approve the matters specified in article 1.1 to 9 of Part B of AOA. A written notice or E-mail shall be sent to the Upya to obtain their consent. In the event no such consent is received from the Upya within a period of 7 (Seven) Business days from the date of receipt of the notice, the consent shall be deemed to be granted by the Investor. The Upya and company shall mutually re-consider any of the reserved matter, if such reserved matter occurred frequently (i.e., every month for a period of 3 consecutive months).
 - 1.1. Any change in the MOA other than change in the Capital Clause of the MOA.
 - 1.2. Changing the rights attached to the Convertible Note or Equity Shares held by the Investor.
 - 1.3. Declaration of or payment of dividends or distribution of profits or commissions except for operating expenses, to shareholders, Promoters or Directors of the Company in excess of a total amount of ₹ 2,00,000/- (Indian Rupees two lac) in a fiscal year.
 - 1.4. Any transaction or decision taken by the Company, which adversely impact the rights of Investor, then all such transactions or decisions will be considered as Reserved matters.
 - 1.5. Approving the Company's liquidation, dissolution or winding up including insolvency or bankruptcy proceedings or an assignment for the benefit of creditors.
 - 1.6. Appointment and cessation of Directors/KMP of the Company.
 - 1.7. Transfer of rights or Control of any entity Controlled by the Company.
 - 1.8. Any Change in social impact objective.
 - 1.9. Setting a monthly salary of any of the founder of any amount greater than ₹5,00,000/- (Indian Rupees five lakh) and such limit will be increased by 30% per annum.

PART C

Notwithstanding anything contained in the other provisions of these articles:

- (i) In the event of any conflict between the provisions of Part A, Part B and/or Part C of these articles, the provisions of Part C shall prevail;
- (ii) The provisions contained in PartCB of these Articles are in addition to the rights and obligations of the parties under the SHA (*as defined under Part C of theseaArticles*), and the non-inclusion of any provision of the SHA in these articles shall not prejudice or affect the enforceability of the SHA.
- (iii) The provisions of these articles shall not be construed to amend or modify the provisions of the SHA or constitute a waiver or other limitation of any rights of the parties thereunder.
- (iv) If any provisions of these articles of association, at any time conflict with any provisions of the SHA, the SHA shall prevail and the Shareholders shall whenever necessary exercise all voting and other rights and powers available to them to procure the amendment, waiver or suspension of the relevant provisions of these articles of association, to the extent necessary to permit the affairs of the Company to be administered as provided in the SHA.
- (v) The provisions provided for under Sections 43, 47, 101 to 107 and 109 of the Act shall not be applicable to the Company.
- (vi) Any notice required to be given under the terms of these articles, shall be given in accordance with the SHA.

1. Definitions & Interpretation.

1.1 Definitions.

All capitalized terms used in these articles, shall, unless the context otherwise requires, have the following meanings:

- “Act”** means the Companies Act, 2013 and includes any and all modifications or amendments thereto, or re-enactments thereof, for the time being in force;
- “Affiliate”** in relation to any Person or Party (herein, the **“Subject Person”**), means:
- (i) in the case of any Subject Person *other than a natural Person*, any other Person that, either directly or indirectly through one or more intermediate Persons, Controls, is Controlled by, or is under the common Control with the Subject Person; and / or
 - (ii) in the case of any Subject Person *that is a natural Person*, any Relative of such Subject Person;

Without limiting the generality of the foregoing, Affiliate in relation to the Investors include: (a) any fund, collective investment scheme, trust, partnership (including, any co-investment partnership), special purpose or other vehicle, in which the Investor is a general or limited partner, significant shareholder, investment manager or advisor, settlor, member of a management or investment committee or trustee; (b) any general or limited partner of the Investor; and (c) any fund, collective investment scheme, trust, partnership (including, any co-investment partnership), special purpose or other vehicle in which any general or limited partner of the Investor is a general or limited partner, significant shareholder, investment manager or advisor, settlor, member of a management or investment committee or trustee.

“Amended & Restated Articles”	means the amended and restated articles of association of the Company incorporating, substantially, the provisions of the SHA and in a form acceptable to Lead Investor;
“Applicable Law”	means and includes all statutes, enactments, acts of legislature or parliament, laws, ordinances, rules, by-laws, regulations, notifications, guidelines, policies, directions, directives and orders having the force of law and as such are in effect as of the date hereof or as may be amended, modified, enacted or revoked from time to time hereafter or other governmental restrictions or any similar form of decision of, or determination by any governmental authority having jurisdiction over the matter in question;
“Audited Financial Statements”	means the audited consolidated annual financial statements of the Company and its Subsidiaries (if any) for each Fiscal Year, consisting of the balance sheet, the profit and loss account, cash flow statement, the Directors’ report, the auditors’ report and all schedules and annexures to, and other documents related to or forming part of, each of the foregoing;
“Board”	means the board of Directors of the Company constituted from time to time in accordance with the terms of these articles;
“Business”	means the business of the Company as described in Recital A hereof;
“Business Day”	means a day (excluding Saturdays and Sundays) on which banks in Mumbai are open for normal banking business;
“Business Plan”	shall mean the business development and financial plan for the expansion of the Business as may be discussed among the Promoters and Lead Investor, however as approved by Lead Investor from time to time;
“Cause”	shall mean any one or more of the following: (i) any act or omission by any Promoter involving moral turpitude other than minor traffic violations which do not entail imprisonment as a penalty as determined by the Independent Person; (ii) commission or omission of an act or acts by a Promoter constituting fraud, as determined by the Independent Person; (iii) an act of dishonesty or other wilful misconduct by any Promoter including, without limitation, theft or misappropriation (or attempted theft or misappropriation) by a Promoter of property of the Company as determined by the Independent Person; (iv) habitual absenteeism, chronic alcoholism or any other form of addiction on the part of any Promoter that prevents him from performing the essential functions of his position; (v) gross negligence in the performance of any Promoter’s duties, or misconduct of such Promoter, which has been determined by the Independent Person, post following principles of natural justice; or (vi) material breach by any Promoter of any terms of the Transaction Documents (where such event is capable of rectification, which is not rectified within 45 (Forty-Five) days following receipt of a written notice by the Promoter;
“Charter”	means the articles of association (including Amended & Restated Articles) and the memorandum of association of the Company;
“Competitor”	means a maximum of 8 (eight) Persons listed in article 15 hereto (which list

	may be updated on an annual basis by the Company in consultation with Lead Investor);
“Control”	(including, with its correlative meanings, the terms “Controlled by” or “under common Control with”) means (a) the possession, directly or indirectly, of the power to direct or cause the direction of management and policies of a Person whether through the ownership of voting securities, by agreement or otherwise or the power to elect more than half of the directors, partners or other individuals exercising similar authority with respect to a Person; or (b) the possession, directly or indirectly, of a voting interest in excess of 50% (Fifty percent) in a Person;
“Director”	means a person nominated and elected to the Board from time to time, appointed in accordance with the terms of these articles and the Act;
“Effective Date”	shall mean the Closing Date <i>(as defined under the Subscription Agreement)</i> ;
“Encumbrance”	means (i) any mortgage, charge (whether fixed or floating), pledge, lien, hypothecation, assignment by way of security, deed of trust, conditional sale, title retention, equitable interest, security interest or other encumbrance of any kind securing or conferring any priority of payment in respect of any obligation of any Person, including any right granted by a transaction which, in legal terms, is not the granting of security but which has an economic or financial effect similar to the granting of security under Applicable Law; (ii) any voting or voting trust agreement, option, pre-emptive rights, right of set-off, right of first offer, refusal or transfer restriction, or any commitment, restriction or limitation of any nature whatsoever, including restriction on use, receipt of income or exercise of any other attribute of ownership, in favour of any Person; and (iii) any adverse claim as to title, possession or use, and the word “encumber” shall be construed accordingly;
“Employment Agreement(s)”	shall mean the employment agreements entered into by the Company and the Promoters;
“Equity Share(s)”	means the equity shares of the Company, from time to time, having a par or nominal value of INR 10/- (Indian Rupees Ten only) each, and each having 1 (one) vote;
“ESOP” or “ESOP Pool”	means the employee stock option plan and pool of and for the Company and its employees;
“Closing Date”	shall have the meaning as defined under the Subscription Agreement;
“Fair Market Value”	shall mean the value determined by an independent valuer appointed by the Board with consent of the Lead Investor.
“Fiscal Year”	means the accounting year of the Company commencing each year on April 1 and ending on March 31 of the following calendar year;
“Fully-Diluted Basis”	means the aggregate of all classes and series of Shares of the Company issued and outstanding at any time, together with all issued and outstanding options and warrants, if any (each whether issued, converted or not and of all kinds), convertible securities of all kinds together with the effect of any anti-dilution protection regarding previous investments, whether or not then issued, granted, vested or exercised in accordance with their terms, and includes the Shares reserved or set-aside in connection with the ESOP Pool;
“INR” or “Indian Rupees”	means the lawful currency of the Republic of India;

“Independent Person”	shall mean a person appointed by the Board with the consent of the Lead Investor, who shall be: (i) a retired judge of the High Court of Jaipur; or (ii) a retired judge of the Supreme Court of India; or (iii) a designated senior counsel of the High Court of Jaipur; or (iv) a designated senior counsel of the Supreme Court of India;
“Intellectual Property”	means and refers to all contingent and future intellectual property including, but not limited to, patents, trademarks, service marks, trade names and copyrights, and applications, licenses and rights with respect to the foregoing, and all trade secrets, including know-how, inventions, designs, processes, works of authorship, manuals, documentation, computer programs and technical data and information (whether registered or unregistered) and any applications or registrations for the protection of these rights and all renewals and extensions thereof existing in any part of the world whether now known or in the future created;
“Investor(s)”	has the meaning ascribed to it in the SHA;
“IPO”	means the underwritten initial public offering of any Shares, either domestic or overseas, of the Company and consequent Listing of Shares, where: (a) the price per share in relation to the initial public offering is determined Promoters, and (b) the entire investment of the Lead Investor in the Company is capable of being exited;
“Innovana”	has the meaning ascribed to it in the SHA;
“Jaisinghani”	has the meaning ascribed to it in the SHA;
“Key Employee”	means: (a) the Promoters; (b) such employees of the Company with cost to the Company of or in excess of INR 50,00,000 (Indian Rupees Fifty Lakhs Only) per month; (c) any employee designated as CEO, CFO, COO, CTO or any equivalent designation at CXO level; and (d) any employee entitled to 0.5% of Shares under the ESOP Pool;
“Lead Investor” or “Negen”	means Negen Tech Opportunities Angel Fund;
“Other Investor(s)”	has the meaning ascribed to it in the SHA;
“Listing”	means the listing of the Securities with the Stock Exchanges board, as approved by Lead Investor in writing;
“Liquidation Event”	means (a) the liquidation, dissolution or winding up of the Company; (b) any merger, amalgamation, consolidation, reconstitution, restructuring or similar transaction involving the Company following which the holders of Shares immediately prior to such transaction (or series of related transactions) hold less than 50% (fifty percent) of the Shares of the Company or the surviving entity (in each case computed on a Fully Diluted Basis); (c) the sale or Transfer of all or substantially all of the business, operations or assets of the Company and/or any subsidiary of the Company which contributes more than 50% (fifty percent) of the net revenues or net profits of the Company on a

consolidated basis; or (d) any transaction involving a change in Control; for the purposes of this sub-clause (d), a change in Control shall be deemed to have occurred if any Shareholder of the Company Transfers any Shares in the Company such that one single purchaser (including one or more Affiliates of such purchaser) acquires an aggregate shareholding of 50% (fifty percent) or more of the total issued and paid up share capital on a Fully Diluted Basis, of the Company; or (e) any of the above for an Affiliate of the Company;

"Person"	means (including, as regards any word or words imputing or implying any such person) any individual or natural person, firm or partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, organization, joint venture, limited or unlimited liability company, corporation, body corporate or any other entity (whether incorporated or not, or of whatever type or nature, wherever situate), or any government or state, or any agency or political subdivision thereof, or any local or municipal authority or other governmental body (whether or not in each case having separate legal personality), or any other entity that may be treated as a person under Applicable Law;
"Promoters"	means Abhishek Gupta and Abhinav Shekhar Vashishtha;
"Related Party(ies)"	shall have the meaning assigned to it under the Act and the rules framed there under;
"Relative"	shall have the meaning as set forth in the Act and the rules framed there under;
"Investors Investment Amount"	shall mean the Subscription Amount (as defined in the Subscription Agreement) paid by the Investors to subscribe to the Shares in the Company;
"Investor Shares"	shall mean the Shares (including the Pre-Series CCPS) held by the Investors on a Fully Diluted Basis;
"Party(ies)"	shall mean the parties who are signatory to the SHA;
"Pre-Series CCPS"	shall mean the pre-series compulsorily convertible preference shares of the Company having a face value of INR 10 (Indian Rupees Ten) and having the terms as set out in article 16 hereto;
"Shares"	means the shares of the Company including the Equity Shares, Pre-Series CCPS and/or any other equity-linked security issued by the Company from time to time;
"SHA"	means the shareholders' agreement dated December 24, 2024 entered into by the Lead Investor, the Company and the Promoters and the Other Investors (<i>as defined in the SHA</i>);
"Shareholder(s)"	means the holder(s) of any Shares of the Company from time to time (or any of such Shares as appropriate) or any other instrument convertible into Equity Shares, and whose names are listed in the register of members of the Company;
"Share Capital"	mean the fully paid-up share capital of the Company on a Fully Diluted Basis from time to time;
"Stock Exchange"	mean the National Stock Exchange and/or the Bombay Stock Exchange and/or Small and Medium Enterprises Stock Exchange and/or any other stock exchange, either international or domestic, as mutually discussed between the Promoters and Lead Investor, however as may be approved by Lead Investor in writings

“Strategic Sale”	means Transfer of the majority shareholding of more than 50% (fifty per cent) of the Company or majority of the assets of the Company for cash or listed securities as decided by the Board in consultation with and prior approval of the Lead Investor and Innovana ;
“Subscription Agreement”	means the share subscription agreement of even date entered into <i>inter alia</i> by the Company, the Promoters and the Lead Investor;
“Subsidiary”	means (whether at the date of the SHA or at any time in the future) any Person Controlled by or on behalf of the Company or one or more of its Subsidiaries;
“Trade Sale”	means a sale of all or substantially all of the assets of the Company to a third party in order to provide an exit;
“Transaction Documents”	means, collectively, the SHA, the Subscription Agreement, the Employment Agreements, Amended & Restated Articles and all exhibits, schedules, restatements and amendments hereto and / or thereto;
“Transfer”	means any proposed sale, transfer, assignment, gift, exchange, grant of an option over or other disposal or alienation in any manner, directly or indirectly, of, or in any other way creating any Encumbrance over, all or any part of the Shares or any of them, including, any beneficial interest therein, as may be specified in these articles, and the words “to transfer” “transferred by” or “transferability” and / or related cognate expressions shall have meanings correlative to the foregoing;

1.2 Interpretation & Construction of Certain References.

The interpretation and construction of Part C of these articles shall be in accordance with the rules set out in **Schedule 3B** of the SHA. All references to articles in this Part C are to those contained in this Part C, unless otherwise specified

2. Board of Directors.

2.1 Composition and Size.

- (a) The Company shall be managed by the Board who shall have powers to do all acts and take all actions that the Company is authorized to do, subject to those matters that are statutorily required under the Act to be approved by the Shareholders, and which shall be referred for approval by the Shareholders.
- (b) Each of the Promoters shall have the right to appoint 1 (one) director to the Board, as long as such Promoter hold Shares and is in the continuous employment with the Company.
- (c) So long as the Lead Investor holds Shares in the Company, the Lead Investor shall have the right to appoint 1 (one) observer to the Board (**“Lead Investor Observer”**).
- (d) So long as Innovana holds Shares in the Company, Innovana shall have the right to appoint 1 (one) director to the Board (**“Innovana Director”**).
- (e) So long as Innovana holds Shares in the Company, Innovana and Jaisinghani, collectively shall have the right to appoint 1 (one) observer to the Board (**“Innovana and Jaisinghani Observer”**).
- (f) In the event there is any modification in the composition of the Board as set out in these articles (in article 2.1 (c) to article 2.1 (d)) or if at any point in time, the composition of the Board varies from the provisions of article 3.1 (c) to article 3.1 (d) for any reason

whatsoever, Negen shall, immediately on the occurrence of such change/variation, have the right to appoint and maintain 1 (one) director to the Board ("**Negen Director**").

- (g) The Lead Investor Observer and the Negen Director (if appointed) shall be entitled to (a) receive all notices, documents, and information provided to a member of the Board or committee of the Board and (b) attend at all meetings of the Board or committees of the Board. For avoidance of doubt, it is hereby clarified that in the event the Lead Investor Observer or the Negen Director is not appointed by the Lead Investor, the rights as set out in article 2.1 (c) shall be available to the Lead Investor.
- (h) The Negen Director and the Innovana and Jaisinghani Director shall hereinafter be referred to as the "**Investor Directors**", the Lead Investor Observer and Innovana and Jaisinghani Observer shall hereinafter be collectively referred to as the "**Investor Observers**".

2.2 **Board Committees.**

Subject to the Transaction Documents, all decisions whether or not to constitute any Board committee, the determination of the title of any such Board committee, the composition thereof and the scope and extent of the responsibilities, powers and functions to be delegated to any Board committee by the Board (subject at all times to the superintendence, control and direction of the Board), shall be as decided by the Board, in its discretion.

2.3 **Meetings & Quorum; Decisions.**

- (a) The Company and the Promoters shall, in accordance with Applicable Law, cause the Board to meet at least 4 (four) times every year, in such a manner that not more than 120 (one-hundred-and-twenty) days lapses between 2 (two) consecutive meetings of the Board.
- (b) The quorum for any Board meeting shall be as per the Applicable Law. The quorum shall be present at the commencement, and throughout the duration, of the meeting. Attendance and participation at Board meetings and meetings of any committees of the Board *via* video conferencing or by any other audio-visual means, carried out in accordance with and subject to the Act, shall count for the purposes of quorum in these articles.
- (c) If a quorum is not present within 30 (thirty) minutes of the scheduled time for any meeting of the Board or ceases to exist at any time during such meeting (a "**Non-quorate Board Meeting**"), then and in that event, the Non-quorate Board Meeting shall automatically stand adjourned (the "**First Adjourned Board Meeting**"). The First Adjourned Board Meeting shall be convened at the same day and time in the following week and shall have the same agenda as the Non-quorate Board Meeting, and nothing further as regards such agenda. If, at the First Adjourned Board Meeting as well, no valid quorum is present pursuant to article 2.3(b) above, then, and in such event, any 2 (two) Directors present at such First Adjourned Board Meeting shall be deemed to constitute a valid quorum and the Board may proceed to discuss and decide on the matters on the same agenda as the Non-quorate Board Meeting and nothing further as regards such agenda. Any decisions so taken in the First Adjourned Board Meeting shall be binding, provided that no business shall be taken up or transacted, or decision be taken at any meeting of the Board (including but not limited to a Non-quorate Board Meeting or First Adjourned Board Meeting) in relation to Consent Matters unless specifically consented to in writing by the Lead Investor
- (d) Subject to article 4 (*Protective Provisions*) below, all decisions or actions of the Board shall be taken by a simple majority affirmative vote or resolution of the Directors present and voting, with all Directors, including the chairman, having only one vote each. The chairman shall not have any second or casting vote.

- (e) If the day on which the First Adjourned Board Meeting is to be held falls on a public holiday at the place where such meeting is being held, then such First Adjourned Board Meeting shall be held on the next Business Day at the same time.
- (f) The provisions of this article 2.3 shall, as appropriate and as applicable, apply *mutatis mutandis* to any committee of the Board or meetings of such committees.
- (g) The Company shall prepare minutes of each Board meeting and circulate them to all the Directors within 15 (fifteen) days after such meeting, provided that the minutes of each Board meeting shall be circulated to the Lead Investor, irrespective of the presence of the Lead Investor Observer at such meeting. The chairman and the company secretary of the Company shall ensure that the minutes so prepared correctly describe and record the proceedings of the Board meeting. The Directors who attended the Board meeting may make comments on the minutes prepared and circulated by the Company, and the company secretary of the Company shall record such comments of the Directors appropriately.

2.4 The Parties expressly understand and agree that the Investor Observers and the Investor Directors shall not be identified as an officer in charge or officer in default of the Company, or as an employee, Key Employee, occupier of any premises used by the Company or as employers of Company's personnel. Notwithstanding anything to the contrary in these articles, the Company shall indemnify and hold the Investor Observers and the Investor Directors harmless from all claims in accordance with the terms of the Transaction Documents and up to the maximum extent permitted under Applicable Law. The Lead Investor Observer and the Negen Director shall be removed/replaced at the sole discretion of the Lead Investor, and the Innovana Director and the Innovana and Jaisinghani Observer shall be removed/replaced at the sole discretion of Innovana and Jaisinghani, collectively.

2.5 **Circular Resolution.**

Subject to compliance with the relevant requirements of the Act, a written resolution circulated to all the Directors or members of committees of the Board, whether in India or overseas, and signed by a majority of such of them who are entitled to vote on the resolution, shall be as valid and effective as a resolution duly passed at a meeting of the Board or committee of the Board called and held in accordance with these articles; provided however that such resolution has been circulated in draft form, together with the relevant documents and materials, if any, to all the Directors. If the resolution proposed to be passed by circulation pertains to a Consent Matter, such circular resolution shall be valid and effective only if it is approved in accordance with article 4 below. Such resolutions may be signed in counterparts.

3. **Shareholders' Meetings.**

3.1 **General Meetings.**

An annual general meeting of the Shareholders shall be held within 6 (six) months from the end of the Fiscal Year as provided under the Act. Subject to the foregoing, the Board, on its own, may convene an extraordinary general meeting of the Shareholders, whenever it deems appropriate.

3.2 **Notices for General Meetings.**

At least 21 (twenty-one) days' prior written notice of every annual general meeting or extraordinary general meeting of Shareholders shall be given to all Shareholders whose names appear on the register of members of the Company. Any such general meeting of the Shareholders (whether annual or extraordinary) may be called by giving shorter notice with the written consent of such Shareholders as provided by the Act, but always with the prior consent of the Lead Investor.

3.3 Contents of Notices.

The notice shall specify the place, date and time of the meeting. Every notice convening a meeting of the Shareholders shall set forth, in full and sufficient detail, the business to be transacted thereat. No business shall be transacted at such meeting unless the same has been stated in the notice convening the meeting, unless otherwise agreed by the Lead Investor.

3.4 Chairman for General Meeting.

- (a) The chairman of the Board shall be the chairman for all Shareholders' meetings. If no such chairman of the Board is appointed or if such chairman is not present at the concerned Shareholders' meeting, the Shareholders present at such meeting may elect 1 (one) of them to be the chairman of such Shareholders' meeting. No chairman of any Shareholders' meeting shall have any second or casting vote.
- (b) Subject to Applicable Law, the Shareholders shall be permitted to participate in Shareholders' meetings by teleconference or videoconference.

3.5 Proxies.

- (a) Any Shareholder may appoint another person as his proxy, and in case of a corporate Shareholder, an authorized representative, to attend a Shareholders' meeting and vote thereat on such Shareholder's behalf; provided however that, the power given to such proxy or representative must be in writing. Any person possessing a proxy or other such written authorization with respect to any Shares shall be able to vote on such Shares and participate in meetings as if such person were a Shareholder.
- (b) Each Shareholder shall ensure and the Company shall ensure that each Shareholder ensures that its representatives, proxies and agents representing such Shareholder at general meetings shall at all times exercise their votes in such manner so as to comply with, and to fully and effectually implement, the provisions of the Transaction Documents.

3.6 Decision Making.

Except as otherwise required by the Act, or as regards the Consent Matters, all decisions of the Shareholders of the Company shall be made by simple majority. No decision or action with respect to any matter listed as Consent Matter shall be taken without the prior written consent of the Lead Investor and Innovana .

3.7 Quorum.

- (a) Subject to the provisions of the Act, a valid quorum for a meeting of the Shareholders shall be deemed to be constituted only if Lead Investor and Innovana (or their authorised representatives) are present at the beginning and throughout such meeting, unless such Lead Investor and/or Innovana has expressly waived the requirement for its presence in writing, as applicable. The attendance and participation at the Shareholders' meetings *via* video conferencing or by any other audio-visual means, carried out in accordance with and subject to the Act, shall count for the purposes of quorum in these articles. It is hereby clarified that the determination of any such quorum being present in accordance with Applicable Law *via* such video conferencing or by any other audio-visual means, shall always include an authorised representative of the Lead Investor.
- (b) If a quorum as required under article 3.7(a) is not present within 30 (thirty) minutes of the scheduled time for any meeting of the Shareholders or ceases to exist at any time during such meeting (a "**Non-quorate Shareholder Meeting**"), then and in that event, the Non-quorate Shareholder Meeting shall automatically stand adjourned (the "**First Adjourned Shareholder Meeting**"). The First Adjourned Shareholder Meeting shall be convened at the same day and time in the following week and shall have the same

agenda as the Non-quorate Shareholder Meeting, and nothing further as regards such agenda. If, at the First Adjourned Shareholder Meeting as well, no valid quorum is present, then, and in such event, any two Shareholders present at such First Adjourned Shareholder Meeting shall be deemed to constitute a valid quorum and such Shareholders may proceed to discuss and decide on the matters on the same agenda as the Non-quorate Shareholder Meeting and nothing further as regards such agenda. Any decisions so taken in the First Adjourned Shareholder Meeting shall be binding. For the avoidance of any doubt, no business shall be taken up or transacted, and no decision or action with regard to any Consent Matter, shall be taken at any Shareholder meeting (including but not limited to the Non-quorate Shareholding Meeting or the First Adjourned Shareholding Meeting) unless the authorized representative of Lead Investor and Innovana is present in person and has voted in favour of such a decision or action or the Lead Investor and Innovana has provided prior written consent in favour of such decision or action.

- (c) If the day on which the First Adjourned Shareholder Meeting is to be held falls on a public holiday at the place where such meeting is being held, then such First Adjourned Shareholder Meeting shall be held on the next Business Day at the same time.

4. Protective Provisions.

4.1 Consent Matters

Notwithstanding any other provision of these articles, no matter listed in article 14 to these articles ("**Consent Matters**") shall be proposed at a meeting of the Board or Shareholders' or any meeting of a committee or subcommittee of the Board or by resolution by circulation in the Company, or any decision be taken, or action be undertaken by the Company, its officers and Directors, without the prior written consent of Lead Investor and Innovana having been obtained. However, upon receipt of such prior consent, the resolution in relation to any Consent Matters can only be passed in the manner consented to by Lead Investor and Innovana without any alterations, deletions or additions thereof.

- 4.2 The Company shall seek the consent of the Lead Investor and Innovana (as set out in article 4.1 above) in relation to Consent Matters by sharing the proposal and all related documents with respect to the same to the email addresses as agreed between the Company and the Lead Investor, and the Company and Innovana, as applicable. It is hereby clarified that the Lead Investor and/or Innovana shall have the right to modify such email addresses by providing intimation of the same to the Company. If the Lead Investor or Innovana does not convey its response (which may be *via* acceptance or rejection of the proposed resolution/proposal, or by way of clarifications/queries/request for additional documents in relation to the matter) of the proposal/proposed resolution within 7 (seven) Business Days of receipt of the matters and all related documents, the Lead Investor or Innovana, as the case may be shall be deemed to have accepted the proposal/proposed resolution.
- 4.3 The Parties agree that the principles set out in this article 4 are fundamental to the governance of the Company and each Party undertakes not to commit any act or omission that would violate this article 4. If any other provision of these articles conflicts with the provisions of this article 4, the provisions of this article 4 shall prevail and be given effect.

5. FURTHER ISSUE OF SHARES AND RIGHT TO MAINTAIN CAPITAL

- 5.1 Subject to the terms and conditions of these articles, including but not limited to article 4 (*Consent Matters*) and in compliance with the procedure set out in article 5.2 below, in the event the Company is desirous of issuing any new Shares to any Person after the Closing Date (other than under an IPO or upon exercise and/or conversion of stock options, if any), including by way of a preferential allotment of Shares (the "**Proposed Issuance**"), the Company shall comply with this article and shall provide a right to the Lead Investor, Innovana and Jaisinghani ("**Pre-Emptive Right Holder(s)**") to participate on a pro-rated basis (based on the respective shareholding of the Pre-Emptive Right Holders (as applicable) computed on a Fully Diluted Basis before such issuance of new Shares) in any such Proposed Issuance (the "**Pre-emptive**

Right"). The Company shall give the Pre-Emptive Right Holders written notice of any such Proposed Issuance (the "**Issuance Notice**") specifying: (i) the number and class of the Shares proposed to be issued (the "**Issuance Shares**"); (ii) the price per Share of the Proposed Issuance (the "**Issuance Price**"); (iii) the manner and time of payment of the subscription amount; and (iv) the date of the Proposed Issuance and details of new proposed investor (collectively the "**Offered Terms**").

- 5.2 The Pre-Emptive Right Holders shall be entitled to exercise its Pre-emptive Right by issuing a written notice to the Company, within 7 (seven) Business Days or such later time period as may be mutually agreed between the Company and the respective Pre-Emptive Right Holder from the date of receipt of the Issuance Notice, intimating the Company that it wishes to exercise its Pre-Emptive Right (the "**Exercise Notice**"). The subscription to the said Issuance Shares shall be effected within 30 (Thirty) Business Days of the Exercise Notice, or such later time period as may be mutually agreed between the Company and the respective Pre-Emptive Right Holder. Subject to the receipt of the payment against exercise of the Pre-emptive Right by Pre-Emptive Right Holder(s), the Company shall issue and allot such number of the Issuance Shares as is set out in the Exercise Notice to the Pre-Emptive Right Holder(s) on the date of closing of the issuance, as mutually agreed between the Company and the Pre-Emptive Right Holder.
- 5.3 In the event a third party does not subscribe to its respective portion of the Proposed Issuance, then the Pre-Emptive Right Holders, shall have the right to subscribe to such Issuance Shares that remain unsubscribed (the "**Unsubscribed Issuance Shares**") over and above its Pre-emptive Right entitlement on an inter-se pro-rated basis (if applicable). Upon becoming aware of the third party's intent to not subscribe to its respective entitlement of the Proposed Issuance, the Company shall promptly issue a notice (the "**Unsubscribed Issuance Notice**") in writing to the Pre-Emptive Right Holders intimating it of the number of Unsubscribed Issuance Shares and offering the Pre-Emptive Right Holders the right to subscribe thereto on an inter-se-pro-rata basis (if applicable) on the Offered Terms.
- 5.4 If the Pre-Emptive Right Holder(s) wish to exercise its right to subscribe to the Unsubscribed Issuance Shares or part thereof (by itself or through any of its Affiliates), it shall within 30 (thirty) Business Days or such other later time period as agreed between the Pre-Emptive Right Holder and the Company from the date of the Unsubscribed Issuance Notice, issue a written notice to the Company intimating the Company of the number of Unsubscribed Issuance Shares it wishes to subscribe to (the "**Unsubscribed Issuance Exercise Notice**"). The subscription to the said Unsubscribed Issuance Notice shall be effected within 45 (Forty-Five) Business Days of the Unsubscribed Issuance Exercise Notice, or such later time period as may be mutually agreed between the Company and the Pre-Emptive Right Holder. Subject to the receipt of the payment against the Unsubscribed Issuance Shares by the Pre-Emptive Right Holder(s), the Company shall issue and allot such number of the Unsubscribed Issuance Shares as is set out in the Unsubscribed Issuance Exercise Notice to the Pre-Emptive Right Holder(s) on the date of closing of the issuance, as mutually agreed between the Company and the Pre-Emptive Right Holders.
- 5.5 If the Pre-Emptive Right Holders do not subscribe to Issuance Shares or the Unsubscribed Issuance Shares in full or in part, as mentioned in article 5.2 and 5.4 respectively, then the Board may, in its discretion, issue and allot such Unsubscribed Issuance Shares to any Person as it deems fit on the Offered Terms as set out in the Issuance Notice within a period of 45 (forty five) days of the expiry of the period as set out in article 5.2 and article 5.4 respectively (as the case may be). In the event the Company does not complete the issuance and allotment to such party within 45 (forty-five) days of the expiry of the period as set out in article 5.2 and article 5.4 respectively (as the case may be), the Company shall not proceed with such issuance and allotment without issuing a fresh Issuance Notice and following the procedure set out in this article 5.
- 5.6 In the event the Company issues and allots Unsubscribed Issuance Shares to a new investor (the "**Prospective Investor**") within the timelines as set out in article 5.5 above, the Prospective Investor shall be required to execute a Deed of Adherence in the form provided in Schedule 5

of the SHA. The Company shall ensure that the Proposed Issuance is completed within the time period as set out in article 5.5.

- 5.7 Notwithstanding anything stated in these articles, the Pre-Emptive Right Holders shall be entitled to nominate its Affiliates to purchase all or any part of the Issuance Shares and upon such nomination, such Affiliates shall have the right to subscribe to the Issuance Shares/Unsubscribed Issuance Shares, as the case may be, as per the terms of this article 5.
- 5.8 The Parties hereby agree that, notwithstanding the above, there exists no commitment by the Investor or its respective Affiliates to further capitalize the Company or to provide finance or any other form of support to the Company, including in the form of loans or guarantees or any security.

6. Treatment of Shares.

- 6.1 The Parties agree and acknowledge that Transfer of any Shares not specifically permitted by this Part C and the SHA shall be null and void, and the Parties shall do every act, deed or thing to prevent such Transfer from being given effect to. The Company agrees to (a) ensure that such Transfers are not registered; or (b) cancel or rectify such Transfer; or (c) reject and reverse such erroneous Transfer made or attempted, *suo motu*, without the necessity of a Board decision and may institute proceedings for this purpose if required or permitted by Applicable Law.
- 6.2 Notwithstanding anything contained in these articles, the Shareholders shall only be entitled to Transfer all or any of the Shares held by them to any Person in accordance with the terms of these articles.

6.3 Transfer or Creation of Encumbrance.

Except with the prior written approval of the Lead Investor and subject to the provisions set out in article 7 (*Right of First Refusal*) and article 8 (*Tag Along*), the Promoters shall not in any manner whatsoever:

- (a) Transfer, directly or indirectly, all or any part of their Shares; and / or
- (b) create any Encumbrance of any nature whatsoever (whether or not perfected) over or in respect of all or any part of the Shares they may hold;

for as long as:

- (i) the Lead Investor holds any Shares in the Company on a Fully-Diluted Basis; or
- (ii) any monies remain due to Lead Investor.

Provided each Promoter shall be entitled to Transfer (in one or more transactions) up to a maximum of 10% (Ten Percent) of the Shares held by such Promoter as on the Closing Date ("**Liquidity Shares**") at any time after the Closing Date, to any Person(s) other than Competitors. For avoidance of doubt, the Promoters hereby agree and undertake that other than the Liquidity Shares, they shall not Transfer their shareholding in the Company (either directly or indirectly) without the prior consent of the Lead Investor. For avoidance of doubt, it is hereby clarified that the provisions of article 7 and article 8 shall not be applicable to any Transfer of the Liquidity Shares.

- 6.4 Notwithstanding anything contained in these articles but subject to article 6.6 below, the Investors shall have the right to freely Transfer all or any of the Investor Shares to any Person provided however that the Investors shall not Transfer the Investor Shares in full or in part to a Competitor. The Investors shall have the right to assign, transfer, sell, pledge or hypothecate the Investor Shares, rights, benefits and any other interest created in its favour herein or under any of the Transaction Documents to any third party (other than a Competitor), subject to such third party executing the Deed of Adherence as in Schedule 5 of the SHA, provided that this

restriction on Transfer to Competitors and the requirement of the transferee executing the Deed of Adherence shall fall away upon failure by the Company and the Promoters to provide an exit to Investors within the Exit Period as contemplated in these articles or the occurrence of an Event of Default. The Promoters shall be under an obligation to facilitate and co-operate with such Transfer including by co-operating in due diligence to be conducted by a potential purchaser and providing necessary information relating to the Company. Further, the Company and the Promoters shall provide all representations and warranties relating to the Company to effectuate the Transfer.

- 6.5 In the event of occurrence of an Event of Default, which breach if capable of cure or remedy, has not been cured or remedied within 45 (Forty-Five) days of the occurrence of such Event of Default (“**Cure Period**”), the Lead Investor shall, without prejudice to any other rights which it may have under the Applicable Law, contract or otherwise, have the right to require the Company to allow the Lead Investor to exercise any of its rights under article 9 hereof, even prior to the Exit Period and the Company and the Promoters shall be obliged to provide an exit within 60 (Sixty) days from the date of expiry of the Exit Period. For avoidance of doubt, it is hereby clarified that notwithstanding anything contained in article 9, in the event of occurrence of an Event of Default, which breach if capable of cure or remedy, has not been cured or remedied within the Cure Period, the Lead Investor shall, at its sole discretion, have the right to elect the exit mechanism as set out under article 9.2, article 9.3 and article 9.4. It is clarified that any exercise of rights under article 9 or under this article shall not affect the indemnification obligations of the Company and Promoters under the Transaction Documents. Further, all Investors shall have the right to participate in an exit in the event the Lead Investor exercise its rights under article 9.1, 9.2, 9.3 and 9.4.

For the purposes of these articles, the occurrence of any one or more of the following events shall constitute an “**Event of Default**”:

- (a) the Company and/or the Promoters are in material breach of any term of the Transaction Documents; and/or
- (b) the Company and/or the Promoters and/or the Directors/officers of the Company proceed with any Consent Matter without complying with the requirements set out in these article and the SHA; and/or
- (c) breach or misrepresentation by the Company and/or the Promoters to observe or comply with any provision, undertaking, representations and warranties or covenant of any of the Transaction Documents; and/or
- (d) any of the Promoters are convicted or restricted in any manner (regardless of the extent, context, validity of such restrictions) from conducting the Business by any court of law anywhere in the world; and/or
- (e) voluntarily disassociation by a Promoter from the Company except for the reasons such as permanent disability or death of the Promoter; and/or
- (f) instance of fraud or gross negligence or willful misconduct or misappropriation by the Company and/or the Promoters in relation to the affairs of the Company; and/or
- (g) termination of the employment of the Promoters with the Company for Cause.

- 6.6 **Promoters’ Right of First Offer.** Subject to the provisions of these articles and the SHA, if any Investor (“**Selling Investor**”) proposes to sell all or part of the Shares held by such Selling Investor (“**Selling Investor’ s Securities**”), such Selling Investor, prior to engaging with any Person in connection with the sale or transfer of his Selling Investor’ s Securities, provide a right to first offer to the Promoters (“**ROFO Right Holders**”) prior to offering the Selling Investor’ s Securities to any other Person.

- (i) The ROFO Right Holders shall indicate their interest in purchasing the Selling Investor's Securities by issuing a written notice indicating the price being offered by the ROFO Right Holders for the Selling Investor's Securities ("**ROFO Notice**") within 7 (Seven) days of receipt of written notice from the Selling Investor. For avoidance of doubt, it is hereby clarified that in the event the ROFO Right Holders fail to issue the ROFO Notice within 7 (Seven) Business Days of receipt of written notice from the Selling Investor, the rights available to the ROFO Right Holders under this article 6.6 shall cease to exist and the Selling Investors shall have the right to transfer the Selling Investor's Securities to any Person.
- (ii) In the event the Selling Investor is satisfied with the price being offered by the ROFO Right Holder, it shall communicate the same by issuing a notice to the Selling Investors within 10 (Ten) days of the ROFO Notice ("**ROFO Acceptance**"). If the total number of Selling Investors Securities offered by the Selling Investor is less than the Selling Investor's Securities that the ROFO Right Holder(s) are willing to purchase, then the Selling Investor's Securities will be allotted to the ROFO Right Holder(s) on the basis of their inter-se pro rata shareholding in the Company. The sale and purchase of the Selling Investor's Securities by the Selling Investor and the ROFO Right Holders, respectively, shall be completed within 20 (twenty) Business Days of the ROFO Acceptance, failing which the rights available to the ROFO Right Holders under this article 6.6 shall cease to exist and the Selling Investors shall have the right to Transfer the Selling Investor's Securities to any Person.
- (iii) If the Selling Investor does not accept the offer in whole or in part, then the said Selling Investor shall be free to sell the concerned Selling Investor's Securities to any third party ("**Third-Party Buyer**") subject to the price being higher than what was offered by the ROFO Right Holders, provided the ROFO Right Holders shall have right to match the offer of the Third-Party Buyer, which shall be exercised by the ROFO Right Holders by issuing a notice to this end ("**New Acceptance Notice**") within 7 (Seven) days of the Selling Investor providing the ROFO Right Holder with notice of the offer of the Third-Party Buyer, failing which the rights of the ROFO Right Holders under this article 6.6 (iii) shall fall away. If the ROFO Right Holders match the offer of the Third-Party Buyer sale and purchase of the Selling Investor's Securities by the Selling Investor and the ROFO Right Holders, respectively, shall be completed within 20 (twenty) Business Days of the date of the New Acceptance Notice. In the event the sale and purchase of the Selling Investor's Securities by the Selling Investor and the ROFO Right Holders, respectively, is not completed within 20 (twenty) Business Days of the date of the New Acceptance Notice, the Selling Investors shall be free to sell the concerned Selling Investor's Securities to any third party.

6.7 Clawback of Promoters' Shares. In the event of occurrence of Cause attributable to either of the Promoters, the Company shall have the right but not the obligation to purchase 50% (fifty percent) of the Shares held by the Promoters, collectively at (i) the lowest price permissible under Applicable Law in case of occurrence of the events as mentioned in sub-limb (ii) of the definition of Cause as set out in these articles; or (ii) 50% (fifty percent) of the Fair Market Value of such Shares in case of occurrence of the events as mentioned in sub-limbs (i), (iii), (iv), (v) and (vi) of the definition of Cause as set out in these articles ("**Claw back Price**"). In the event the Company does not exercise its right under this article 6.7, or exercises its right under this article 6.7 only in relation to a portion of the Shares as mentioned above, the Lead Investor shall have the right but not the obligation, to the extent the right under this article 6.7 is not exercised by the Company, purchase the Shares of the Promoters (or such portion of the Shares of the Promoters) as mentioned above at the Claw back Price.

6.8 Liquidation Preference.

6.8.1 In the event of occurrence of a Liquidation Event, the Investors shall have, in respect of the Shares held by Investors, liquidation rights senior to all Shares held by the Promoters, but *pari passu* to the Shares held by other Shareholders (excluding the Promoters) such that each of

the Investors and other Shareholders (excluding the Promoters) shall receive, prior to any distributions made to the Promoters, an amount equivalent to the higher of (i) 1x of the time of the Subscription Amount or the amount invested by the Investors/Shareholders (excluding the Promoters) to subscribe to the Shares held by such Shareholders, as applicable; or (ii) the Investor' s or Shareholder' s (excluding the Promoters) pro rata share of the proceeds of such Liquidation Event on an as-converted basis; plus the amount of any dividends relating to the Pre-Series CCPS which have accrued or been declared by the Company but have remained unpaid ("**Pre-Series CCPS Liquidation Payment**")

- 6.8.2 To the extent that proceeds available for distribution in a Liquidation Event are inadequate to pay the Subscription Amount of Investors and the amount invested by the Investors/Shareholders (excluding the Promoters) to subscribe to the Shares held by such Shareholders, as applicable, plus the amount of any dividends relating to the Pre-Series CCPS which have accrued or been declared by the Company but have remained unpaid as determined in accordance with the above in full to the said Shareholders, the proceeds to be received and/or realized on such Liquidation Event shall be distributed to the Investors and the other Shareholders (excluding the Promoters) in proportion to its/their entitlement as set out in article 6.8.1 above, subject to Applicable Law.
- 6.8.3 To the extent that there are additional proceeds and/or assets available for distribution after payment of the Pre-Series CCPS Liquidation Event Payment to the Investors and other Shareholders (excluding the Promoters), the holders of Pre-Series CCPS and the holders of Shares (excluding the Promoters) shall not be entitled to participate in the distribution of such remaining proceeds and/or assets, and the remaining proceeds shall be distributed to the Promoters in proportion to their *inter-se* shareholding in the Company.

7. Right of First Refusal

- 7.1 In the event that any Promoter(s) proposes to Transfer, whether directly or indirectly ("**Transferring Shareholder**"), any or all Shares held by such Transferring Shareholder ("**Offer Securities**") to any Person ("**Prospective Purchaser**"), the Lead Investor, Jaisinghani and the Promoter other than the Transferring Shareholder ("**ROFR Right Holder(s)**") shall have the right (but not the obligation) to purchase all or any of the Offer Securities, on the same terms and the price as offered by the Transferring Shareholder to the Prospective Purchaser ("**ROFR**").
- 7.2 The Transferring Shareholder shall intimate the ROFR Right Holders by a written notice ("**ROFR Notice**") clearly stipulating, inter alia, (a) the price, number and terms offered by the Transferring Shareholder to the Prospective Purchaser in respect of the Offer Securities, (b) all other arrangements, understandings and agreements between the Transferring Shareholder and the Prospective Purchaser, whether oral or in writing, (c) the details of the Prospective Purchaser including, without limitation, the identity of the Prospective Purchaser; and (d) the proposed date of consummation of the proposed Transfer ("**ROFR Terms**"). Such notice shall be accompanied by documents evidencing key commercial terms as agreed between the Transferring Shareholder and the Prospective Purchaser.
- 7.3 Within 7 (Seven) Business Days of the receipt of the ROFR Notice or such other later time period as may be mutually agreed by the Company and the ROFR Right Holder(s) ("**ROFR Period**"), the ROFR Right Holders shall, at its sole discretion, send a notice in writing to the Transferring Shareholder and the Company either (a) agreeing to purchase all or part of the portion of the Offer Securities offered to the ROFR Right Holders, by on its own and/or through its respective Affiliates on the ROFR Terms; or (b) in case of the ROFR Right Holder being the Lead Investor, choosing to exercise the Tag Along Right (*as applicable*) per article 9; or (c) declining to exercise the ROFR and the Tag Along Right (in case of the ROFR Right Holder being the Lead Investor).

- 7.4 In the event that the ROFR Right Holders accept to purchase all or part of its portion of the Offer Securities ("**Accepted Securities**"), on its own or through its Affiliates, as set out in article 7.3(a), the ROFR Right Holders shall issue a letter of acceptance to the Transferring Shareholder, agreeing to acquire the Accepted Securities on the ROFR Terms ("**Acceptance Notice**"). The Acceptance Notice shall be binding on the Transferring Shareholder.
- 7.5 The Transferring Shareholder shall complete the Transfer of the Accepted Securities to the ROFR Right Holders (or its Affiliates, as applicable), within 20 (Twenty) Business Days of the issuance of the Acceptance Notice, or such other later time period as may be mutually agreed by the Company and the ROFR Right Holder(s). The ROFR Right Holders, as applicable, shall remit the purchase consideration simultaneously against delivery of original certificates in respect of the Accepted Securities and duly executed and stamped securities transfer forms in favour of the ROFR Right Holders or its respective Affiliates, as applicable. All the Accepted Securities shall be transferred free of any and all Encumbrances and the Transferring Shareholder shall provide customary representations and warranties, backed by indemnities, on title to the Accepted Securities.
- 7.6 If the ROFR Right Holder(s) (a) does not issue the Acceptance Notice within the ROFR Period, or (b) declines to exercise the ROFR, or (c) exercises the ROFR in part and not to the full extent of the Offer Securities, then the Transferring Shareholder shall offer any balance Offer Securities to any Prospective Purchaser (and no other person) without following the provisions of this article 7 (*Right of First Refusal*) again, on terms and conditions not more favourable than the ROFR Terms; provided however that, the Company shall not effect any such Transfer to such Prospective Purchaser if the ROFR Right Holders have not approved such proposed third person transferee in writing.
- 7.7 If the Transfer of the Offer Securities to the Prospective Purchaser does not occur within 60 (sixty) days following the expiry of the ROFR Period, as applicable, the Transferring Shareholder shall not make the Transfer without again complying with the requirements of this article 7.
- 7.8 It is clarified that the ROFR set forth in this article 7 is not exercisable 'one time only' but rather shall apply in each case of a proposed Transfer of Shares by the Promoters subject to the terms of these articles.
- 7.9 Notwithstanding anything stated in these articles, the Lead Investor shall be entitled to nominate its Affiliates to purchase all or any part of the Offer Securities and upon such nomination, such Affiliates shall have the rights as per the terms of this article 7.

8. TAG ALONG RIGHT

- 8.1 The Parties expressly agree that any Transfer by the Promoter(s) shall be, in addition to the ROFR under article 7, subject to the right of the Investors (but not the obligation) to require such Promoter(s) to procure the Transfer of such number of Shares held by the Investors, who shall have the right to tag-along with the Transfer of the Promoters' shares in relation to such number of Shares held by the Investors (calculated on proportionate basis) based on the then existing inter-se shareholding between the Investor and the respective Promoter ("**Tag Securities**") to the Prospective Purchaser on the ROFR Terms ("**Tag Along Right**").
- 8.2 Provided however that, in the event that the Transfer by the Promoter(s) would result in a change in 50% or more of the shareholding of the Company on a Fully Diluted Basis, then the Tag Along Right of the Investors shall be such that the Tag Securities shall, at the option of the Investors, constitute the entire extent, of the Investors' shareholding on a Fully Diluted Basis at the relevant time and the terms of this article shall be accordingly construed.
- 8.3 Upon completion of the process set out in article 7 (*Right of First Refusal*) with respect to the Offer Securities, and thereafter should there be any Offer Securities still available for sale to the Prospective Purchaser, then the Promoter(s) shall have the obligation to provide notice to the Investors with respect to the Tag Along Rights ("**Tag Along Notice**"). The Investors within

07 (seven) Business Days or such other later time period as mutually agreed by the Company and the Lead Investor shall send a notice in writing to the Promoter(s) and the Company either (a) choosing to exercise the Tag Along Right ("**Tag Acceptance Notice**"); or (b) declining to exercise the Tag Along Right. Such Tag Acceptance Notice shall be irrevocable and shall constitute a binding agreement by the Investors to sell the Tag Securities on the terms and conditions set forth in the ROFR Notice.

- 8.4 Where the Investors have elected to exercise its Tag-Along Right and the Prospective Purchaser fails to purchase the Tag Securities of Investors, the Promoter(s) shall not Transfer any of the Offer Securities to the Prospective Purchaser.
- 8.5 In the event the Investors do not issue a Tag Acceptance Notice, it shall be deemed to have elected not to sell its Shares, and the Promoter(s) shall be entitled to sell all or part of the Offer Securities to the Prospective Purchaser mentioned in the ROFR Notice on the same terms and conditions set out in the ROFR Notice. If completion of the sale and Transfer to the Prospective Purchaser does not take place within 60 (sixty) days following the expiry of the Tag Along Notice, the Promoter(s) right to sell the Offer Securities held by such Promoter(s) to the Prospective Purchaser shall lapse and the provisions of this article shall once again apply to the Offer Securities of the Promoter(s).
- 8.6 In the event of exercise of the Tag-Along Right by the Investors under this article 8, the Promoter(s) shall ensure that the Prospective Purchaser purchases all the Tag Securities in priority to the Offer Securities of such Promoter(s) and simultaneously with the same.
- 8.7 The Investors shall not be obliged to provide any representations, warranties and indemnities in relation to Transfer of the Tag Securities, other than customary representations and warranties on title to the Tag Securities.
- 8.8 It is hereby clarified that the rights under this article 8 shall not be available to the Investors other than the Lead Investor and Innovana in case and to the extent the ROFR is exercised by the Lead Investor and/or Innovana.

9. Exit

9.1 Period and Process:

- 9.1.1 The Company and the Promoters shall use best efforts to provide an exit to the Investors at any time prior to 5 (five) years from the Closing Date, provided if mutually agreed by the Company, the Promoters and the Lead Investor, the said period may be extended by 1 (one) additional year ("**Exit Period**") and the Company and the Promoter(s) shall work together in good faith to provide the Investors with complete exit from the Company by way of completing any events set out in this article 9.
- 9.1.2 The Company and the Promoter(s) (with the prior written approval of the Lead Investor) shall finalize the mechanism through which an exit will be provided to the Investors.

9.2 IPO

- 9.2.1 Subject to provisions of these articles, the Company shall take steps to file for the completion of an IPO by Listing the Company's Shares. For this purpose, Negen and Innovana both shall have the right to recommend and nominate merchant bankers to the Board ("**Investor Merchant Bankers**"), and the Company shall engage the services of any of the Investor Merchant Bankers as approved by the Board.
- 9.2.2 The Investors shall not be required to call themselves or be considered as a promoter of the Company and therefore the Shares held by the Investors shall not be subject to any lock-in conditions applicable to a promoter, for and after the IPO. The IPO may be either through a fresh issue of Shares of the Company and/or an offer for sale of the Shares held by the Shareholders of the Company.

- 9.2.3 The requisite number of Equity Shares to be contributed, so as to meet any minimum Listing requirements, shall be offered by all Shareholders, other than Investors. However, if so desired by the Investors, the Shares held by the Investors shall be contributed so as to meet the minimum Listing requirement, in which event, such offer or contribution shall be prioritized in the following manner: (a) contribution by Investors; and (b) contribution by all other Shareholders.
- 9.2.4 The Company shall bear all expenses in connection with an IPO up to the maximum extent permitted under Applicable Law. The Company shall indemnify the Investors to the maximum extent permitted under Applicable Laws, against any loss, claim, damage, liability (including reasonable attorneys' fees), cost or expense arising out of or relating to any misstatements and omissions of the Company in any registration statement, offering document or preliminary offering document, and like violations of applicable securities laws by the Company or any other error or omission of the Company in connection with a public offering hereunder.
- 9.2.5 The Promoters undertake to do all such things as required to make sure that the Company is able to undertake the IPO in the timelines specified in these articles including but not limited to voting on resolutions needed, provide each of their consent whenever needed, participating in road shows, offer adequate number and percentage of Shares to enable Listing, lock in restrictions, compliance with Applicable Laws of such jurisdictions, authorities, boards, banks, financial institutions, lenders, commission and sharing information as needed and doing other acts or deeds as may be necessary to facilitate such a sale by the Investor.

9.3 **Strategic Sale:**

- 9.3.1 In the event that the Lead Investor requires the Company to complete a Strategic Sale pursuant to article 9.1 above, the Company, shall deliver a notice to the Lead Investor (the "**Strategic Sale Notice**"), setting out (i) the exact nature of the transaction proposed; (ii) the identity of the proposed acquirer or transferee; (iii) the price and other terms on which the Shares are proposed to be sold; (iv) the estimated time for completion of the Strategic Sale; and (v) any other material terms of the proposed Strategic Sale.
- 9.3.2 In the event that Lead Investor consents to the terms contained in the Strategic Sale Notice in writing (the "**Approved Strategic Sale**"), the Lead Investor shall indicate the number of Shares held by it in the Company that Lead Investor and its Affiliates (including the Other Investors) proposes to offer in such Strategic Sale and the Company and the Promoters shall take all steps necessary to complete the Approved Strategic Sale on the terms set out in the Strategic Sale Notice, within a period of 90 (ninety) days from the date on which the Lead Investor consents to the Strategic Sale in writing. Such period may be extended, with the prior written consent of the Lead Investor, by any time required to obtain any governmental approvals. In the event that the Strategic Sale has not been completed within 120 (one hundred and twenty) days or such other date as may be mutually agreed between the Company and Lead Investor from the date of written consent of the terms contained in the Strategic Sale Notice, the Company and the Promoters shall seek the written consent of Lead Investor to continue with the Approved Strategic Sale by sending a fresh Strategic Sale Notice.
- 9.3.3 All costs and expenses relating to the Approved Strategic Sale shall be borne entirely by the Company save and except the stamp duty applicable on the sale of Investor Shares which shall be borne by such Party as may be stipulated under the Applicable Law. The Investors shall not be required to provide any guarantees or indemnities, or be subject to any restrictive covenants pursuant to, an Approved Strategic Sale. The Investors shall not be responsible for obtaining government approvals, permits or consents, or for providing any representations, warranties or covenants, except as may be agreed under these articles for effecting the Approved Strategic Sale.

- 9.3.4 The Company and the Promoters shall, in good faith, consider all opportunities relating to a Strategic Sale that are brought to its notice by Lead Investor.

9.4 **Buy Back:**

- 9.4.1 In the event the Company and the Promoters fail to provide the Investors with an exit within the Exit Period and 6 (six) months thereafter, the Lead Investor, at its sole discretion, shall have the right to require the Company to effect a buy-back of the Investor Shares. Upon the request from the Lead Investor, the Company shall buy-back all or any of the Shares held by the Investors ("**Buy Back Shares**"), upon receipt of the notice issued by the Lead Investor addressed to the Company/ Promoters ("**Buy Back Notice**"). Upon receipt of the Buy Back Notice, the Company/Promoters shall buy back the Buy Back Shares subject to the provisions of this article 9.4.

- 9.4.2 The buy back shall be effected subject to the following:

- (i) Buy back of the Buy Back Shares shall be undertaken at the higher of: (i) the Investors Investment Amount; or (ii) the average of the fair market value of such Shares as determined by any 2 (two) Big4s ("**Buy Back Price**"). For the purposes of this article, "**Big4s**" shall mean Deloitte, Ernst & Young, Klynveld Peat Marwick Goerdeler and PricewaterhouseCoopers. The Company shall, buy back the Buy Back Shares at the Buy Back Price (in one or more tranches, as may be needed) such that Buy Back Shares are bought back over a reasonable period of time.
- (ii) In the event the Company does not have sufficient profits, reserves or retained earnings or is otherwise unable for any reason to buy back all of the Buy Back Shares at the Buy Back Price acceptable to the Lead Investor, the Company shall buy back the maximum number of Buy Back Shares from the Investors at such Buy Back Price, subsequent to which the Investor can either (a) avail the buy-back rights for the remaining Shares soon upon the Company being allowed under the Applicable Laws to undertake such buy-back at Buy Back Price; or (b) exercise its rights under article 9.5 (*Drag Along Right and Trade Sale*).
- (iii) The Promoters hereby agree and undertake that they shall not offer any Shares held by them in any buy-back offer by the Company until such time as all the Buy Back Shares are bought back by the Company.
- (iv) Upon the receipt of the Buy Back Notice, the Company shall, and the Promoters shall assist the Company, in taking all reasonable steps as may be necessary to ensure that the Investors are able to effectively exercise the rights contained herein. Such steps may include (i) obtaining statutory approvals in relation to the Company, if required; (ii) passing appropriate resolutions; and (iii) taking such other measures as the Investors may reasonably request.
- (v) If the buy-back is to be provided by the Promoters, then the Promoters hereby agree and acknowledge that they shall be liable to buy the Buy Back Shares upon receipt of the Buy Back Notice at the Buy Back Price within the time period mentioned therein. The Promoters shall take all necessary steps as may be necessary to ensure that the Investors are able to effectively exercise the rights contained herein.

9.5 **Drag Along Right and Trade Sale**

- 9.5.1 Without prejudice to any other rights of the Lead Investor, if the Company and the Promoters have failed to provide an exit to the Investors prior to the Exit Period, the Lead Investor ("**Dragging Investor**") shall have the right but not the obligation ("**Drag Along Right**"), to compel the Promoters and Other Investors (other than the Lead Investor) (the "**Dragged Shareholders**") to sell all or part of their respective Shares ("**Drag Along Shares**") along with the Shares of the Dragging Investor to a third party,

including a competitor ("**New Buyer**"), at the same price as being received by the Dragging Investor ("**Drag Along Sale**").

9.5.2 **Exercise of Drag Along Right – Procedure.** Upon the exercise of Drag Along Right by the Dragging Investor, as the case may be, the Dragging Investor, shall send a notice to the Dragged Shareholders, specifying (i) the consideration payable per Share, (ii) the number of Shares to be sold by the Dragged Shareholders; and (iii) any other material terms of such purchase ("**Drag Along Notice**"). Upon receipt of a Drag Along Notice, the Dragged Shareholders shall:

- (i) simultaneously with the Dragging Investor, sell such a number of their Shares (as determined by the Dragging Investor, and set out in the Drag Along Notice) free of any Encumbrance on terms set out in the Drag Along Notice;
- (ii) take all necessary actions (including such action as may be reasonably requested of them by the Dragging Investor) to cause the consummation of such transaction, including: (i) exercising the voting rights attached to the Shares in favour of such transaction; (ii) not exercising any approval or voting rights in connection therewith in a manner contrary to the consummation of Drag Along Sale; and
- (iii) ensure that the provisions of this article shall apply *mutatis mutandis* to a Trade Sale.

9.5.3 **Delivery of Drag Along Shares.** The Dragged Shareholders shall deliver the share certificates in respect of the Drag Along Shares, to the Company at least 30 (Thirty) days before the proposed closing date of such sale, along with the transfer forms duly filled in and if the Shares have been dematerialized, the Dragged Shareholders shall issue appropriate instructions to their depository participant to give effect to the Transfer in accordance with the Drag Along Notice.

9.5.4 If a Dragged Shareholder fails, refuses or is otherwise unable to comply with its obligations in this article 9.5, the Company shall have the authority and be obliged to designate a Person to execute and perform the necessary Transfer on such Dragged Shareholders' behalf. The Company may receive and hold the purchase consideration in trust for the Dragged Shareholder and cause the New Buyer to be registered as the holder of the Drag Along Shares being sold by the relevant Dragged Shareholders. The receipt by the Company of the purchase consideration shall be a good discharge to the New Buyer.

9.5.5 **Co-operation.** The Company and the Dragged Shareholders, as the case may be, shall take all necessary and desirable actions in connection with the consummation of the sale pursuant to the exercise of the Drag Along Right by the Dragging Investor, including (a) timely execution and delivery of such agreements and instruments as required by the Dragging Investor, (b) performance of other actions reasonably required by the Dragging Investor, (c) providing information as may be requested by the Dragging Investor or New Buyer, and (d) providing such representations, warranties and indemnities as may reasonably be required by the New Buyer.

10. Non-Competition; Non-Solicitation Restrictions.

10.1 Restrictions.

Except with the prior written consent of Lead Investor, the Promoters shall not, as long as they hold any of the Shares in the Company, or as long as they are in employment of the Company or Directors of the Company, whichever is later and for 2 (two) years thereafter, either directly

or indirectly, whether jointly and / or severally or together with any other Person (including, any combination thereof or through or with any of their respective Affiliates or any Director of the Company or otherwise howsoever):

- (a) undertake to carry on or engage in or be concerned in or provide advisory, consulting or any other services, as an individual, through a partnership or as a shareholder, joint venture partner, collaborator, consultant, advisor, principal contractor or sub-contractor, director, trustee, committee member, office bearer or agent or in any other manner whatsoever, whether for profit or otherwise, to any business or entity engaged in a business or activity that competes with or is similar to the Business (each, a **“Protected Activity”**); or
- (b) receive any financial benefit from any Protected Activity, whether as an employer, proprietor, partner, shareholder, investor, director, officer, employee, consultant, agent or otherwise; or
- (c) canvass or solicit orders for goods or services of a similar type to those being provided by the Company from any person who is a corporate customer of the Company; or
- (d) canvass, solicit or otherwise approach any employee of the Company or person engaged by the Company (and/or former employees/person who were employed/engaged with the Company during the course of 6 (six) months preceding such time) or
- (e) Transfer, use or disclose any client database or confidential information or Intellectual Property of the Company or other know-how or other information pertaining to the Business, customers or suppliers of the Company, other than for the *bona fide* business needs of the Company; or

10.2 **Concern in Business.**

For the purposes of article 10.1, a person is concerned in a business if:

- (a) she / he directly or indirectly carries it on as principal or agent; or
- (b) she / he is a partner, director, employee, shareholder, trustee, committee member, office bearer, secondee, consultant or agent in or is otherwise engaged by, of or to any person who carries on the business.

10.3 **Reasonableness of Restrictions.**

The Promoters agree and acknowledge that the restrictions contained in this article 10 (*Non-Solicitation and Non-Competition Restrictions*) are reasonable for the legitimate protection of the Business and goodwill of the Company and Investors. However, in the event that any restriction shall be found to be void, but would be valid if some part thereof were deleted or the scope, period or area of application were reduced, then such restriction shall apply with the deletion of such words or such reduction of scope, period or area of application as may be required to make the restrictions contained in this article 10 (*Non-Solicitation and Non-Competition Restrictions*) valid and effective. The Promoters further agree and acknowledge that the covenants and obligations as set forth in this article 10 (*Non-Solicitation and Non-Competition Restrictions*) relate to special, unique and extraordinary matters and that a violation of any of the terms of such covenants and obligations will cause the Company and Investors irreparable injury. Therefore, the Promoters agree that the Company and/or Investors shall be entitled to an interim injunction, restraining order or such other equitable relief as a court of competent jurisdiction may deem necessary or appropriate to restrain such Promoter from committing any violation of the covenants and obligations contained in this article 10 (*Non-Solicitation and Non-Competition Restrictions*). These injunctive remedies are cumulative and are in addition to any other rights and remedies that the Company and/or Investors may have under Applicable Law or in equity.

11. Information Rights and Accounting.

11.1 Delivery of Financial Statements and Additional Documents.

So long as Investors hold any Shares in the Company, the Promoters shall, cause the Company to, and the Company shall, deliver to Investors, the following:

- (a) the Audited Financial Statements as soon as they become available but, in any event, within 150 (One Hundred Fifty) days after the end of each Fiscal Year, provided that the Company shall share the draft audited financial statements with the Board and Investor at least 7 (seven) days prior to adoption of annual accounts by the Board;
- (b) unaudited consolidated quarterly financial statements, as soon as they become available but, in any event, within 10 (ten) days of the end of each calendar quarter, each as certified by the chief financial officer and the chief executive officer as true, accurate and not misleading, provided the Company shall provide the Lead Investor with monthly updates in a form and manner as agreed between the Company and the Lead Investor which shall include qualitative and quantitative updates in relation to the Company and the Business including but not limited to revenue;
- (c) the Business Plan within 30 (thirty) days prior to the end of each Fiscal Year;
- (d) copies of the annual reports of the Company promptly after such reports have been filed with the Registrar of Companies;
- (e) copies of the minutes of meetings of the Board and/or Shareholders of the Company within 15 (fifteen) days of the respective meetings
- (f) promptly, and in any event within 15 (fifteen) days following any request, current versions of the Company's Charter, bearing the stamp of the Registrar of Companies, an updated copy of the Company's capitalization table and current versions of all the investment documents and all other documents relating to any subsequent financings of the Company, the management of the Company, or otherwise affecting the Investor Shares, bearing the signatures of all parties thereto, in each case with all amendments and restatements;
- (g) information relating to the termination of employment/ resignation of Key Employees within 15 (fifteen) Business Days of the occurrence of such event;
- (h) details of any event of force majeure or any other event which would have a material effect on the Company's profits or business including details of any litigation material to the business which is made or threatened by or against the Company or any Promoters upon the Company/Promoters coming into knowledge of the same;
- (i) notification in writing of any notice of (a) audit, investigation, default or threatened action received from any governmental authority; (b) default under any agreements entered into by the Company immediately upon becoming aware of it; and (c) any notice received from an investigative authority by a Promoter, whether in relation to his role in the Company or not. Further, the Promoter shall ensure that the Company shall, from time to time upon request from any of the Investor, deliver to the Investor, a notification confirming that no such notice of default has been received or setting out details of any such notice and the action taken or proposed to be taken to remedy it, upon the Company/ Promoters coming into knowledge of the same;
- (j) any other relevant information that may be reasonably required by Investor including but not limited to **business** plans, **capital** expenditure budgets and management reporting information, within 30 (thirty) days of such request, or within such time period as may be mutually agreed between the Company and the Investor.

11.2 Contents of Documents.

All financial statements to be provided to the Investors pursuant to article 11.1 above shall include, at least, a balance sheet, a statement of profit or loss / income statement, and statements of cash flow and shall be prepared in English in accordance with Applicable Law.

11.3 Inspection; Additional Information.

- (a) The Lead Investor shall have the right to inspect the properties and facilities of the Company in a reasonable manner and within the normal business hours of the Company, provided that, a prior written notice of not less than 7 (Seven) days is provided by Lead Investor to the Company informing the Company of such inspection, to examine and take copies or abstracts of the books and records of the Company, and to interview the Company's management officers, employees, and accounting and legal advisers, with the full cooperation of the Company. This article 11.3(a) shall not limit any rights which Lead Investor may have under Applicable Law.
- (b) In addition, and not as a limitation to any of the foregoing, the Company covenants that it will provide to Lead Investor full disclosure and information regarding the Company's affairs at meetings of the Board, annual general meetings, extraordinary general meetings of the Shareholders and related party transactions.
- (c) The Company further covenants that it will promptly provide to the Lead Investor all details regarding any claim or threat of claim (including of infringement of any third-party Intellectual Property rights) in relation to the assets or business operations of the Company.
- (d) Costs of such inspection shall be borne by the Lead Investor, unless there is an adverse finding/discovery, in which case, the costs of such inspection shall be borne by the Company.

11.4 Accounting.

The Company will maintain a system of accounting established and administered in accordance with Applicable Law, as appropriate and as applicable, consistently applied, and will set aside on its books all such proper reserves as shall be required under Applicable Law. Further, the Company shall ensure that a duly executed revenue recognition policy is adequately followed by the Company in respect of the affairs and Business of the Company in accordance with the accounting standards from time to time.

11.5 Compliance.

The Promoter(s) shall jointly and severally, cause all of the actions to be taken in accordance with articles 11.1 to 11.4, to ensure strict compliance therewith.

12. INTERNAL AUDITOR

In the event the Company and/or the Promoters fail to comply with the provisions of article 11.1 or if there is an adverse discovery pursuant to the exercise of the right mentioned in article 11.3, the Lead Investor shall have the right to appoint 1 (one) internal auditor/ consultant for the financial review of the Company to protect and safeguard the interest of the Investors, and ensure financial transparency and visibility, at the Company's cost. The Company shall provide relevant information that may be requested by such auditor/consultant within 15 (fifteen) days of such request.

13. Miscellaneous.

13.1 Rights and covenants of Investors.

Notwithstanding anything contrary in these articles or the SHA, the Investors and/or their respective Affiliates shall not be required to pledge their Shares as and by way of security for any indebtedness of the Company or provide any guarantee, or create Encumbrance on any of their Shares in any manner whatsoever or provide any other support to any third party, including, without limitation, to the lenders of the Company.

13.2 Parties' Voting.

The Parties shall at all times vote in respect of all their respective Shares, take all necessary actions within their control and exercise the powers granted to them under or pursuant to these articles or with respect to any matter related to the Company, strictly in accordance with the provisions of these articles and in furtherance thereof.

13.3 Superior Rights. The Company shall not and/or the Promoters shall ensure that after the issuance of Investor Shares to the Lead Investor, the Company does not grant any other current/potential investor or a third party, any rights which are more favourable than those granted to the Lead Investor and Innovana. If the rights granted to any other investor or existing Shareholder are at variance with rights of the Lead Investor and Innovana, then the Lead Investor and Innovana shall be entitled to such favourable terms.

13.4 Related Party Transactions. The Company undertakes that, any transactions with Related Party undertaken by the Company following the Effective Date of the SHA, shall be subject to article 4 and shall be conducted at commercially justifiable terms and the relationship will be conducted at an arm's length basis. All related party transactions in relation to the Company and Promoters, shareholding of all parties in relation to the Company and relationship among the Shareholders shall be disclosed to Lead Investor.

13.5 The Company, post expiry of 6 (six) months from the Closing Date, may create an ESOP Pool constituting options which when exercised represents not more than 526 (five hundred twenty six) Equity Shares. For avoidance of doubt, it is hereby clarified that (i) the creation of the ESOP Pool at any time prior to the expiry of 6 (six) months from the Closing Date, and/or (ii) any increase in the size of the ESOP Pool such that the options constituting the ESOP Pool when exercised, represent more than 526 (five hundred twenty six) Equity Shares, shall require the prior written consent of the Lead Investor.

14. CONSENT MATTERS

- 14.1 The sale, Transfer, license, mortgage, charge, pledge, creation of a lien, lease, exchange or other disposition of material assets (tangible or intangible) or any interest therein or sale or disposition of any part of the undertaking and/ or goodwill of the Company, except to the extent such sale, transfer etc. is for the purpose of meeting requirements which have been approved in the Business Plan;
- 14.2 Declaration or distribution of capital or profits by dividends, capitalization of reserves or otherwise, or the redemption or repurchase of any shares of the Company; and/or the subdivision or cancellation of the Company's authorized or issued share capital;
- 14.3 (i) Incurrence of debt or guarantee by the Company; and (ii) capital expenditure or investment by the Company, exceeding the amount envisaged in this respect in the Business Plan, singly or in aggregate, in a Fiscal Year;
- 14.4 Entering into or any material amendments to employment contracts with the Promoters and/or whole-time directors; and/or approval of or payment of any fee, compensation or other remuneration (in cash, in kind or otherwise) to any of the Directors in their capacity as director of the Company, that is not envisaged in the Business Plan;
- 14.5 Entering into or amendment of any agreement or contract with any Related Party by the Company and/or any decision to enter into any joint ventures, partnerships, collaborations or consortiums with any person outside the scope of Business Plan; and/or any investments by the Company in the equity shares of a public limited company and/or a listed company except loan, debt or credit facility taken from the Related Parties at the arm length price provided such loan, debt or credit facility (collectively) in a single transaction or series of transactions, does not exceed INR 1,00,00,000 (Indian Rupees One Crore) in a Fiscal Year;
- 14.6 (i) Creation of any new class of securities which have a preference over the Pre-Series CCPS or the variation of any rights attaching to any Share in the Company, if the variation has the effect of rendering the Shares superior in any respect to the Shares held by Lead Investor; and/or (ii) any increase/modification in the size of the ESOP Pool as set out in article 13.5 or the MSOP Pool (as defined in the Subscription Agreement)) and issuance of sweat equity shares; and/or (iii) voluntary winding up, liquidation or dissolution of the Company and/or (iv) mergers, acquisitions, disinvestments, creation of subsidiaries, consolidation, amalgamation, reconstitution, reconstruction, recapitalization, reorganization or other business combination involving the Company and/ or its subsidiaries; and/or (v) entering into any compromise with any of the creditors or any class of them by the Company with regard to any material debts, and/or entering into, variation or termination of any material agreement or arrangement outside the ordinary scope of business by the Company;
- 14.7 Appointment or removal or change of the statutory auditors and internal auditors of the Company or change in any policy on financial matters such as significant accounting practices and depreciation practices, more than once in a Fiscal Year;
- 14.8 Approve the timing, structure, pricing and other details relating to any initial public offering including the Listing or any Strategic Sale of the Company; and/or change of Control of the Company;
- 14.9 Change in the registered office or name of the Company and/or amendment of the Charter of the Company and/or any change in business scope/objectives, any diversification into business areas unrelated to its existing businesses, or creation of a subsidiary; and/or conversion of the Company from a private limited company to a public limited company, or vice versa;
- 14.10 Approval and adoption of the annual Business Plan of the Company or any change in the Business Plan;

- 14.11 Issue of advisory shares/management stock options/phantom stock/stock appreciation rights in excess of 5 % (five percent) of the Share Capital on the Closing Date. It is hereby clarified that the Company shall provide the Lead Investor with information/data/documents stating and illustrating the strategic advantage and nature of each issue (regardless of the number and size of the issue) of advisory shares/management stock options/phantom stock/stock appreciation rights.

15. LIST OF COMPETITORS

- 15.1 Durogreen Waste Management Private Limited
- 15.2 Ecowrap Impact Private Limited
- 15.3 NEPRA Environmental Solutions Technologies Private Limited
- 15.4 Sampurn(e)arth Environment Solutions Pvt. Ltd
- 15.5 BVG India Limited
- 15.6 Ramky Enviro Engineers Limited
- 15.7 Shivalik Solid Waste Management Ltd
- 15.8 Metro Waste Handling Pvt Ltd

16. TERMS OF PRE-SERIES CCPS

The Pre-Series CCPS shall be governed by the following terms and conditions:

All capitalized terms used but not defined herein shall have the meaning ascribed to it under the Subscription Agreement.

- 16.1 **Dividend.** Minimum preferential dividend rate is 0.0001% (Zero point Zero Zero Zero One Percent) per annum (the “**Preferential Dividend**”). The Preferential Dividend is cumulative, provided that it is due only when declared, prior and in preference to any dividend or distribution payable upon the Shares of any class or series in the same fiscal year.
- 16.2 **Liquidation Preference.**
- As set out in Clause 7.8 of the SHA and article 6.8.
- 16.3 **Conversion of the Pre-Series CCPS**
- (i) Each Pre-Series CCPS may be converted into Equity Shares at any time at the option of the holder of that Pre-Series CCPS, at any time before 19 (Nineteen) years from the date of issuance of the same at the price per Pre-Series CCPS (i.e. INR 1,83,800 (Indian Rupees One Lakh Eighty Three Thousand Eight Hundred) per Pre-Series CCPS) paid by the holders thereof towards subscription to the Pre-Series CCPS (“**Conversion Price**”), and shall be subject to adjustment from time to time as provided herein. Subject to compliance with applicable Laws, each Pre-Series CCPS shall automatically be converted into Equity Shares, at the Conversion Price then in effect, at such later date as may be permitted under Law upon the Company’s sale of its Equity Shares in a firm commitment underwritten initial public offering of the Equity Shares on an internationally recognised stock exchange.
 - (ii) The number of Equity Shares issuable pursuant to the conversion of any Pre-Series CCPS shall be the number obtained by dividing the total amount paid against the issue of such Pre-Series CCPS by the applicable Conversion Price (as defined above and subject to adjustment set forth therein). No fractional shares shall be issued upon conversion i.e., the number of Equity Shares issued shall be rounded off to the nearest whole share.
- 16.4 **Voting Rights.** Each Pre-Series CCPS shall entitle the holder to the number of votes equal to the number of whole or fractional Equity Shares into which such Pre-Series CCPS could then be converted (based on the then applicable Conversion Price). For the purpose giving effect to the above voting arrangement, the Parties agree that Sections 43 and 47 of the Act shall not apply to the Company.
- 16.5 **Registration rights.** The holders of Pre-Series CCPS shall receive typical and customary registration rights, where available, in all global market(s) where the Company lists the Shares.

Subscriber Details					
S. NO	Name, Address, Description and Occupation	DIN/PAN/Passport Number	Place	DSC	Dated
1	Abhishek Gupta S/o Satya Narayan Gupta R/o 37/113, H1 Bindhu Katra, Gwalior Road, Agra Agra Cantt 282001 U.P. IN Business	BEUPG2367H	delhi	ABHISHEK GUPTA	03/12/2018
2	Abhinav Shekhar Vashistha S/o Chandra Shekhar Vashistha R/o Plot No-293, Heeranagar-A, Heerapura Near Nobale General Hospital, Vaishali Nagar Jaipur 302021 RJ IN Business	07665880	delhi	ABHINAV SHEKHAR VASHISTHA	03/12/2018

Signed Before Me

Name		Address, Description and Occupation	DIN/PAN/Passport Number/ Membership Number	Place	DSC	Dated
ACA	PRADYUMN DADHICH	A-62. PANCHSHEEL GARDEN, NAVEEN SHAHDARA DELHI 110032 Practising chartered accountant	544453	delhi	PRADYUMN DADHICH	03/12/2018

Checkform

Modify

For WEVOIS LABS PVT. LTD.

Abhinav
DIRECTOR